

|                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |                             |  |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |          |                                                                                                                                                              |            |
|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------|--|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------|--------------------------------------------------------------------------------------------------------------------------------------------------------------|------------|
| <b>SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |                             |  | 1. REQUISITION NO.<br>610-27-1-6091-0001                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |          | PAGE 1 OF 58                                                                                                                                                 |            |
| <b>OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, &amp; 30</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |                             |  |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |          |                                                                                                                                                              |            |
| 2. CONTRACT NO.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       | 3. AWARD/EFFECTIVE DATE     |  | 4. ORDER NO.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |          | 5. SOLICITATION NUMBER<br>36C25026Q0414                                                                                                                      |            |
| 7. FOR SOLICITATION INFORMATION CALL:                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       | a. NAME<br>Samuel Galbreath |  | b. TELEPHONE NO. (No Collect Calls)<br>301-456-3435                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |          | 8. OFFER DUE DATE/LOCAL TIME<br>06-03-2026<br>1630 EST                                                                                                       |            |
| 9. ISSUED BY<br><br>Department of Veterans Affairs<br>Network Contracting Office (NCO) 10<br>2780 Airport Drive STE 340<br>Columbus OH 43219                                                                                                                                                                                                                                                                                                                                                                                                                          |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |                             |  | 10. THIS ACQUISITION IS<br><br><input type="checkbox"/> UNRESTRICTED OR <input checked="" type="checkbox"/> SET ASIDE: 100 % FOR:<br><input type="checkbox"/> SMALL BUSINESS<br><input type="checkbox"/> HUBZONE SMALL BUSINESS<br><input checked="" type="checkbox"/> SERVICE-DISABLED VETERAN-OWNED SMALL BUSINESS<br><input type="checkbox"/> WOMEN-OWNED SMALL BUSINESS (WOSB) ELIGIBLE UNDER THE WOMEN-OWNED SMALL BUSINESS PROGRAM<br><input type="checkbox"/> EDWOSB<br><input type="checkbox"/> 8(A)<br>NAICS: 561730<br>SIZE STANDARD: \$9.5 Million |          |                                                                                                                                                              |            |
| 11. DELIVERY FOR FOB DESTINATION UNLESS BLOCK IS MARKED<br><br><input type="checkbox"/> SEE SCHEDULE                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       | 12. DISCOUNT TERMS          |  | 13a. THIS CONTRACT IS A RATED ORDER UNDER DPAS (15 CFR 700)<br><br><input type="checkbox"/>                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |          | 13b. RATING<br>N/A                                                                                                                                           |            |
|                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |                             |  |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |          | 14. METHOD OF SOLICITATION<br><input checked="" type="checkbox"/> RFQ <input type="checkbox"/> IFB <input type="checkbox"/> RFP                              |            |
| 15. DELIVER TO<br><br>Department of Veteran's Affairs<br>Fort Wayne VA Medical Center<br>2121 Lake Avenue<br>Fort Wayne, IN 46805                                                                                                                                                                                                                                                                                                                                                                                                                                     |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |                             |  | 16. ADMINISTERED BY<br><br>Department of Veterans Affairs<br>Network Contracting Office (NCO) 10<br>260 E. University Avenue<br>Cincinnati OH 45219                                                                                                                                                                                                                                                                                                                                                                                                           |          |                                                                                                                                                              |            |
| 17a. CONTRACTOR/OFFEROR                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       | FACILITY CODE               |  | 18a. PAYMENT WILL BE MADE BY<br><br>Department of Veterans Affairs<br>FMS-VA-2 (101)<br>Financial Services Center<br>PO Box 149971<br>Austin TX 78714-9971<br><br>PHONE: FAX:                                                                                                                                                                                                                                                                                                                                                                                 |          |                                                                                                                                                              |            |
| TELEPHONE NO.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       | UEI:                        |  | EFT:                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |          |                                                                                                                                                              |            |
| <input type="checkbox"/> 17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |                             |  | <input type="checkbox"/> 18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED<br><input type="checkbox"/> SEE ADDENDUM                                                                                                                                                                                                                                                                                                                                                                                                            |          |                                                                                                                                                              |            |
| 19. ITEM NO.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          | 20. See CONTINUATION Page<br>SCHEDULE OF SUPPLIES/SERVICES                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |                             |  | 21. QUANTITY                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  | 22. UNIT | 23. UNIT PRICE                                                                                                                                               | 24. AMOUNT |
|                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       | The Fort Wayne VAMC has a service requirement for grounds maintenance to include snow and ice removal, and lawn care services.<br><br>All required work is located at the Fort Wayne Northern Indiana Health Care System Campus located at 2121 Lake Avenue Fort Wayne, IN 46805.<br><br>Snow and ice removal shall take place annually approximately from November 1st through March 31st on an as needed basis.<br><br>Lawn care shall take place from April 1st through October 31st. See SOW below for full details.<br><br>This procurement is a base contract plus four possible options years.<br>An organized site visit is scheduled for May 1st at 9:00AM<br>See offeror information page for more details.<br>Email quotes to samuel.galbreath@va.gov<br>No physical quotes will be accepted<br>(Use Reverse and/or Attach Additional Sheets as Necessary) |                             |  |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |          |                                                                                                                                                              |            |
| 25. ACCOUNTING AND APPROPRIATION DATA<br>610-3670162-6091-853300-2549 010050100                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |                             |  |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |          | 26. TOTAL AWARD AMOUNT (For Govt. Use Only)                                                                                                                  |            |
| <input checked="" type="checkbox"/> 27a. SOLICITATION INCORPORATES BY REFERENCE FAR 52.212-1, 52.212-4. FAR 52.212-3 ARE ATTACHED. ADDENDA<br><input type="checkbox"/> 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA<br><input type="checkbox"/> 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |                             |  |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |          | <input type="checkbox"/> ARE <input checked="" type="checkbox"/> ARE NOT ATTACHED.<br><input type="checkbox"/> ARE <input type="checkbox"/> ARE NOT ATTACHED |            |
| 30a. SIGNATURE OF OFFEROR/CONTRACTOR                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |                             |  | 31a. UNITED STATES OF AMERICA (SIGNATURE OF CONTRACTING OFFICER)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |          |                                                                                                                                                              |            |
| 30b. NAME AND TITLE OF SIGNER (TYPE OR PRINT)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       | 30c. DATE SIGNED            |  | 31b. NAME OF CONTRACTING OFFICER (TYPE OR PRINT)<br>Shelton Beasley                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |          | 31c. DATE SIGNED                                                                                                                                             |            |

## Table of Contents

|                                                                                                                       |           |
|-----------------------------------------------------------------------------------------------------------------------|-----------|
| <b>SECTION A .....</b>                                                                                                | <b>1</b>  |
| A.1 SF 1449 SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL PRODUCTS<br>AND COMMERCIAL SERVICES.....                       | 1         |
| <b>SECTION B - CONTINUATION OF SF 1449 BLOCKS .....</b>                                                               | <b>4</b>  |
| B.1 CONTRACT ADMINISTRATION DATA.....                                                                                 | 4         |
| <b>STATEMENT OF WORK.....</b>                                                                                         | <b>6</b>  |
| <b>OFFEROR INFORMATION PAGE .....</b>                                                                                 | <b>17</b> |
| B.2 PRICE/COST SCHEDULE.....                                                                                          | 20        |
| ITEM INFORMATION .....                                                                                                | 20        |
| B.3 DELIVERY SCHEDULE .....                                                                                           | 20        |
| <b>SECTION C - CONTRACT CLAUSES .....</b>                                                                             | <b>22</b> |
| C.1 52.212-4 CONTRACT TERMS AND CONDITIONS—COMMERCIAL PRODUCTS<br>AND COMMERCIAL SERVICES (NOV 2023) (DEVIATION)..... | 22        |
| C.2 52.217-9 OPTION TO EXTEND THE TERM OF THE CONTRACT (MAR 2000) ...                                                 | 28        |
| C.3 52.222-42 STATEMENT OF EQUIVALENT RATES FOR FEDERAL HIRES (MAY<br>2014).....                                      | 28        |
| C.4 52.240-91 SECURITY PROHIBITIONS AND EXCLUSIONS (NOV 2025)<br>(DEVIATION).....                                     | 29        |
| C.5 52.240-93 BASIC SAFEGUARDING OF COVERED CONTRACTOR<br>INFORMATION SYSTEMS (DEVIATION) (NOV 2025) .....            | 38        |
| C.7 VAAR 852.242-71 ADMINISTRATIVE CONTRACTING OFFICER (OCT 2020)....                                                 | 42        |
| C.8 52.252-6 AUTHORIZED DEVIATIONS IN CLAUSES (NOV 2020).....                                                         | 43        |
| C.9 52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998) .....                                                       | 43        |
| <b>SECTION D - CONTRACT DOCUMENTS, EXHIBITS, OR ATTACHMENTS .....</b>                                                 | <b>45</b> |
| ATTACHMENT I - SCA 20154781.....                                                                                      | 45        |
| ATTACHMENT II - RFI.....                                                                                              | 45        |
| ATTACHMENT III - LIMITATION OF SUBCONTRACTING CERTIFICATION VAAR<br>852.219-75.....                                   | 45        |
| ATTACHMENT IV - FORT WAYNE SITE MAP VETERANS ADMINISTRATION. ....                                                     | 45        |
| <b>SECTION E - SOLICITATION PROVISIONS.....</b>                                                                       | <b>46</b> |
| E.1 52.212-1 INSTRUCTIONS TO OFFERORS—COMMERCIAL PRODUCTS AND<br>COMMERCIAL SERVICES (SEP 2023)(DEVIATION).....       | 46        |
| E.2 52.216-1 TYPE OF CONTRACT (DEVIATION) (NOV 2025).....                                                             | 48        |
| E.3 52.219-1 SMALL BUSINESS PROGRAM REPRESENTATIONS (FEB 2024) .....                                                  | 48        |
| E.4 52.225-2 BUY AMERICAN CERTIFICATE (OCT 2022) .....                                                                | 52        |
| E.5 52.240-90 SECURITY PROHIBITIONS AND EXCLUSIONS REPRESENTATIONS<br>AND CERTIFICATIONS (NOV 2025) (DEVIATION) ..... | 52        |
| E.6 52.252-5 AUTHORIZED DEVIATIONS IN PROVISIONS (NOV 2020) .....                                                     | 57        |
| E.7 VAAR 852.252-70 SOLICITATION PROVISIONS OR CLAUSES INCORPORATED<br>BY REFERENCE (JAN 2008).....                   | 57        |

|                                                                                |    |
|--------------------------------------------------------------------------------|----|
| E.8 52.252-1 SOLICITATION PROVISIONS INCORPORATED BY REFERENCE (FEB 1998)..... | 57 |
|--------------------------------------------------------------------------------|----|

## SECTION B - CONTINUATION OF SF 1449 BLOCKS

### B.1 CONTRACT ADMINISTRATION DATA

1. Contract Administration: All contract administration matters will be handled by the following individuals:

a. CONTRACTOR:

b. GOVERNMENT: Contracting Officer 36C610

Department of Veterans Affairs

Network Contracting Office (NCO) 10

2780 Airport Drive STE 340

Columbus OH 43219

2. CONTRACTOR REMITTANCE ADDRESS: All payments by the Government to the contractor will be made in accordance with:

☒ 52.232-33, Payment by Electronic Funds Transfer—System For Award Management, or

☐ 52.232-36, Payment by Third Party

3. INVOICES: Invoices shall be submitted in arrears:

a. Quarterly ☐

b. Semi-Annually ☐

c. Other ☒ Work has been completed, and accepted by the COR.

4. GOVERNMENT INVOICE ADDRESS: All Invoices from the contractor shall be submitted electronically in accordance with VAAR Clause 852.232-72 Electronic Submission of Payment Requests.

ACKNOWLEDGMENT OF AMENDMENTS: The offeror acknowledges receipt of amendments to the Solicitation numbered and dated as follows:

| AMENDMENT NO | DATE |
|--------------|------|
|              |      |
|              |      |
|              |      |

# **STATEMENT OF WORK**

## **Part I: General Information**

### A. Introduction

VA Northern Indiana Health Care System (VANIHCS) has a requirement for grounds maintenance to include snow and ice removal, and lawn care services at 2121 Lake Avenue, Fort Wayne, IN 46805. Award may be an all-inclusive contract to one contractor or an award for snow and ice removal services and an award for lawn care to different contractors.

### B. Background

VANIHCS provides health care services to veterans of the U.S. Armed Forces for both inpatients and out-patients. Grounds maintenance services are not completed by VA employees due to a lack of equipment and personnel. These services have been contracted in the past.

### C. Scope

1. The contractor shall provide all supervision, labor, tools, equipment, vehicles, transportation and chemicals necessary to provide full service snow and ice removal and lawn care services. Lawn care services shall maintain healthy grass, trees, shrubs and plants and present a clean, neat and professional appearance. Snow and ice removal services shall be performed in a manner that provides a safe and satisfactory environment. Safety devices shall be utilized at all times on all equipment.
2. The snow and ice removal encompasses snow and ice removal from all designated sites, deicing of all designated areas, removal of snow and ice from all parking lots, drives, walkways, sidewalks, crosswalks and all ramps. Snow and ice removal shall take place approximately from November 1 through March 31 on an as needed basis. These are estimated times and contractor shall be available before November 1 and after March 31 if snow and ice fall occurs before or after those time frames.
3. Lawn and landscaping care includes mowing, edging, trimming, mulching, weeding, over seeding, fertilizing, herbicide and pesticide control, and removal of debris. Lawn care shall take place from April 1 through end of October 31. These are estimated times and contractor shall be available before April 1 and after October 31 if the growing season occurs before or after those time frames.
4. Joint Commission Requirements
  - a. Contractor shall attend a post-award orientation meeting prior to any work on site. VA shall schedule the meeting and it shall include discussion of the

following topics: (VA shall provide information to the Contractor regarding these topics and shall document the meeting.)

- i. Fire and Safety
  - ii. Infection control
  - iii. Disaster procedures
  - iv. Security
- b. Contractor shall be responsible to ensure that Contractor employees coming to the work site receive the information required above.
  - c. Contractor shall be responsible to ensure Contractor employees providing work within the scope of the contract are fully trained and competent on the procedures and equipment used to perform the required work with appropriate licenses listed in Part III supporting information.
5. Contractor's personnel shall interrupt their work at any time to avoid interference with patient care procedures and the normal functioning of the facility, to include utility services, fire protection systems and passage of facility patients.

#### D. Applicable Documents

Contractor shall ensure that the equipment functions in conformance with the latest published edition of the regulations for the work identified. Contractors shall ensure that the application of chemicals is in conformance with the latest published edition of the regulations for the work identified.

- EPA (**FIFRA** (Federal Insecticide Fungicide and Rodenticide Act): The Federal Insecticide, Fungicide, and Rodenticide Act was enacted in June 25, 1947.
- Applicators of lawn chemicals classified as restricted use shall provide a copy of their current commercial pesticide/fertilizer applicator certification prior to applying any lawn chemicals on VA Property. <http://codes.lp.findlaw.com/incode/15/16/5>
- EPA (40 CFR 170 Pesticide Worker Protection Standard): All commercial applicators shall wear appropriate PPE to prevent chemical exposures.
- OSHA (29 CFR 1910.1200): Contractor shall inform employees of hazards of working with any chemicals they shall be working with.
- OSHA (29 CFR 1910 Subpart I Personal Protective Equipment): Contractor shall ensure staff wear appropriate PPE to protect their employees from injury.

## **Part II: Work Requirements**

## A. Technical Requirements

1. Snow and ice removal – The parking and drive areas are approximately 9.79 acres of combined asphalt, concrete and gravel surfaces. In addition to the parking lot surface there are approximately 9,240 linear feet of perimeter and internal concrete sidewalks to be cleaned.

a. The Contractor shall remove snow and ice from all parking lots, drives, walkways, sidewalks, crosswalks, ramps and loading dock area per the attached map on a 24 hour basis. Removal shall be from edge to edge. All snow in the loading dock area shall be pulled out and placed on VANIHCS lawn areas. All snow shall be removed from parking spaces upon completion of each removal event. Scraper blade shall have contact with the ground. Contractor shall not leave spillover. Contractor shall not push snow off of VANIHCS premises into streets or onto neighboring property. Each snow removal event shall be completed in five hours or less. In instances of sustained snowfall contractor shall continue snow/ice removal until surfaces are clear. Priority areas for snow and ice removal are as follows:

- i. Walks
- ii. Main entrance, circle drive and emergency circle drive (I)
- iii. Other drives, entrances
- iv. Patient parking lots A, C and E
- v. Employee parking lots B, E and G
- vi. Employee/Volunteer parking lots, lots D, F and J
- vii. Loading dock area (pit) and lot H
- viii. East parking lot K

b. Contractor responsibilities:

- i. Contractor shall evaluate areas of responsibility that have refrozen overnight or been affected by drifting snow.
- ii. Contractor shall treat and/or remove areas of snow, ice and possible blowing snow accumulations by **6:00 a.m.** local time of the next day.
- iii. Services shall be performed in a manner that shall maintain a satisfactory and safe environment for patients, families, staff, and visitors during periods of snow and ice and when conditions occur that cause refreezing of melt off from previous precipitation and when conditions exist that create blowing and drifting snow from previous precipitation.



- iv. Contractor shall perform services in the most efficient manner.
  - v. Contractor shall be responsible for any damages to government property and privately owned vehicles that occur from snow and ice removal services.
- c. Contractor shall remove snow and ice by plowing, blowing, shoveling, or other suitable means not harmful to the traffic surface in order to produce and maintain safe passage of pedestrians and vehicles. The Contractor shall provide services to treat and plow snow, and deice all areas when there is a minimum snow accumulation of one-half inch. Precipitation that causes ice to form on surfaces shall be treated and removed immediately regardless of accumulation levels.
  - d. The contractor shall maneuver around any parked cars that cannot be relocated to clear the area. Contractor shall be liable for any damages to vehicles or property in performance of the contract.
  - e. The contractor shall provide snow and ice removal services within 90 minutes of notification by the Contracting Officer's Representative (COR) or the Administrative Officer on Duty (AOD) to treat traffic surfaces and sidewalks.
  - f. Contractor shall review internet and/or other means to track weather and be on site ready for larger snow falls of four (4) inches or more. The contractor can arrive at the facility before the COR or AOD calls to prepare before oncoming snow storm arrival. The contractor's actions shall be continuous until treatment is no longer necessary. The COR or the AOD shall inspect all areas before the snow and ice removal crew leaves the facility. All high priority areas (facility entrances, sidewalks, steps, emergency room drive, driveways and walkways, patient loading and unloading zones) shall be kept clear of ice and snow at all times.
  - g. When overnight snowfall is eight (8) inches or less, the Contractor shall have all areas cleared no later than 6:00 a.m. local time.
  - h. When daytime or overnight snowfall is greater than eight (8) inches, blizzard or extreme icing conditions exist, the contractor shall clear all areas to the best capabilities of his or her labor and equipment and focus on the high priority areas marked on attached map.
  - i. In the event of excessive accumulation where snow can no longer be pushed off parking spaces, the Contractor shall load, haul, and deposit snow in areas on the VA campus, when and where designated, and as approved by the COR, to ensure parking spaces are not blocked.
  - j. Snow and ice shall be removed from all hydrants and access to hydrants kept clear at all times.
  - k. Plowing and treatment of traffic surfaces both pedestrian and vehicular shall be performed by priority in accordance with priority listing above.

- l. All sidewalks and parkways shall be plowed, treated, and maintained to a safe and usable condition at all times.
- m. Treatment shall be with rock salt for roads, parking lots, loading area and drives; salt and sand mixture for gravel surfaces; calcium and or magnesium chloride beads or pellets (no flakes or rock salt) for walks, steps, landings, porches, ramps and handicapped parking areas. Ice melt pellets shall be able to melt at - 25 degrees Fahrenheit generating heat on contact and product shall leave little or no residue.
- n. The contractor shall re-install immediately any traffic or pedestrian safety signs, damaged or dislodged by the snow and ice removal plows or equipment.
- o. The contractor shall install and maintain pedestrian safe snow stakes to mark all hydrants and fire lanes, curbing, edges of parking lots, walkways and drives prior to snow and ice removal season. Snow stakes removal after snow season shall be coordinated with the COR. Snow stakes shall be installed at minimum intervals of 15 feet for drives and parking lots and 10 feet intervals for walkways. Snow stakes shall be approved by the COR before the first snow fall. Snow stakes shall be made of sturdy fiberglass to withstand the elements, but flexible enough to bend and then return to original position. Snow stakes shall be a minimum 5/16 inches wide and 48 inches in length, one end metal-capped and the other end pointed, orange fluorescent in color with hi-visibility 360°reflectors highly visible day or night.
- p. The contractor and the COR shall inspect the parking lots, sidewalks and other designated areas for damage before the snow/ice season starts and again at the end of snow and ice removal season. The areas shall be checked and documented on a written report of the findings signed by both the contractor and COR and provided to the Contracting Officer. Listing shall include information on:
  - i. Parking slot concrete bumpers
  - ii. Curbing
  - iii. Facility signage
  - iv. Parking lot storm drains
  - v. ADA wheelchair sidewalk ramps
- q. Contractor shall clearly mark boundaries of the gravel parking lots so the edges of the lots shall be identified when covered with snow. Contractor shall use snow stakes specified above.
- r. The contractor shall remove any gravel from the lawn displaced by snow plowing services.

- s. The contractor shall re-grade and fill in potholes on the gravel parking lots when necessary through-out the snow and ice removal season and at the end of season in the spring.
- t. Contractor shall be responsible for any damages incurred during the performance of this contract as defined in "Protection of Government Property" located in Part III, Paragraph G.
- u. Removal of Ice.
  - i. Contractor shall immediately remove ice to provide secure footing or safe driving conditions. In the event packed ice occurs with ambient temperatures falling below deicing chemicals temperature range of usability, deicing agents shall be applied to provide traction for pedestrians and vehicle traffic at all times 24 hours per day and 7 days per week.
  - ii. Contractor shall ensure that adequate source of deicing agents are readily available throughout the duration of the contract. The price shall not be increased due to the Contractor's failure to obtain deicing agents necessary to perform services.

## 2. Lawn Care:

- a. The contractor shall provide all labor, materials, manpower and equipment for lawn care services on approximately 12.5 acres of grounds. Lawn mowing shall not occur prior to 7:00 a.m. or after 8:00 p.m. Local Time
- b. The contractor shall repair and/or replace any damage to landscaping areas and lawns incurred during the snow and ice removal season.
- c. The frequency of the service for mowing, trimming (weed eating), blowing and sweeping solid surfaces shall be once per week. Grass height shall be maintained between 2.5 and 4 inches. Under high growth conditions the contractor may be required to mow more than once weekly. Under drought conditions and when no growth has occurred weekly service may not be required. Under said conditions the COR shall determine the need for weekly service. The frequency for other services shall be as listed below.
- d. Lawn care shall include at a minimum:
  - i. Removal and disposal of all lawn debris and trash before and after weekly service. May be disposed in VANIHCS containers. Large debris items such as tree limbs shall be cut into 18"-24" lengths and placed in

location directed by COR. Debris shall include natural debris (tree limbs, dry brush, rodent habitats, dead animals, etc.) and man-made debris.

- ii. Trimming (weed eating) weekly around trees, shrubs, buildings, fences, posts, fire hydrants, parking lot bumpers and other fixed obstacles; concurrent with mowing unless otherwise required by COR.
- iii. Mowing; weekly unless otherwise required by COR.
- iv. Blowing/sweeping solid surfaces; weekly unless otherwise required by COR.
- v. Annual spring mulching of all landscaping beds. – updated 4/26/2024
- vi. Monthly cleaning and weeding of beds. vii. Semi-annual trimming of trees and shrubs. viii. Monthly edging of all solid surfaces to include chemical treatment of vegetation from cracks in walks, along walls, curbs, ramps and all other paved areas.
- ix. Fall preparation of existing sod/soil/lawn for over seeding shall be completed on all lawns (not wooded areas) during the period from September 15 to October 15; water using VA utilities where available and until stabilized as needed for seeding. Where water is not available contractor shall provide adequate means to water as needed.
  - 1) Core aerate all lawn surfaces in preparation of over seeding.
  - 2) Utilize basic landscaping blend type grass seed suitable for Indiana region.
  - 3) Provide and apply suitable starter fertilizer as needed.
  - 4) In spring, proof roll all lawn surfaces to correct unevenness of the lawn.
- x. Fertilizing/herbicide/pesticide (four step treatment program) for lawns (not wooded areas) and all other vegetation. Annual Four Step program includes;
  - 1) Early Spring: fertilize and pre-emergent treatment for broadleaf and crab grass control for lawns and landscaping beds.

- 2) Late Spring/Early Summer: fertilize and post emergent treatment (weed and feed) for lawns and landscaping beds.
  3. Midsummer: fertilize and treat for insects and fungus for lawns and landscaping beds.
  4. Late Fall: Fertilize and treat for weeds (commonly referred as winterize treatment) for lawn and landscaping areas. Care shall be taken on this step to wait until over seeding has already germinated.
- xi. Contractor shall be a state certified applicator for herbicides and pesticides for base year plus 4 possible option years of contract. Material Safety Data Sheets (MSDS) shall be provided prior to notice to proceed. Contractor shall plan work to be performed in a safe and effective manner before work starts.
- e. Additional leaf, seed, and other debris removal shall be completed as required during the fall and spring. Fallen leaves shall be mulched during the fall season. Excessive leaf mulch shall be placed in VANIHCS dumpers. Wooded area shall be cleaned at the end of the mowing season and prior to the first snow fall. Removal shall be conducted approximately twice per week during peak season. Contractor shall provide services on an as needed basis to facilitate neat and clean grounds at all times during the fall and spring seasons.
  - f. Contractor shall provide tree and shrub trimming to include removal of storm damaged and dead tree branches. This includes all small trees within 20 feet of buildings. They shall be trimmed and pruned as required to maintain their natural growth characteristics and to enhance the beauty and health of the plant while now allowing contact with buildings. Hedges shall be maintained to their natural mature height and shape.

### 3. Safety Requirements

Contractor shall take such safety precautions reasonably necessary to protect the lives and health of occupants of the facility. Contractor shall immediately correct conditions the Contracting Officer or designee may deem as safety concerns. If the contractor fails or refuses to comply promptly, the Contracting Officer may issue an order stopping all or any part of the work and hold the contractor in default.

### 4. Quality Assurance

VANIHCS will surveil contractor's performance to ensure that all service requirement objectives are met. A Quality Assurance Surveillance Plan is included in Section D.

### 5. Deliverables

- a. Contractors shall submit licenses and certification of training.
- b. Contractor shall also provide a written service ticket for all services rendered at completion of service. The service ticket shall include time(s) in/out, task(s) completed and contractor employee name(s) completing the task.
- c. Contractor shall provide Point of Contact List with current names and telephone numbers of employees performing snow and grounds maintenance services for VANIHCS. The number(s) shall be manned during normal business hours and 24 hours/7 days per week during snow removal season.

### **Part III: Additional Contract Requirements**

#### **A. General**

1. The Contractor's employees shall wear visible identification and company uniforms approved by the COR at all times while on the premises of the VAMC.
2. It is the responsibility of the Contractor to park in the appropriate designated parking areas. Information on parking is available from the VA Police Section or from the COR.
3. Contractor shall not possess weapons on VA Property.
4. Enclosed containers, including tool kits, shall be subject to search. Violations of VA regulations a result in citation answerable in the United States (Federal) District Court, not a local district, state, or municipal court.
5. Point of Contact List –Contractor shall provide and maintain current Indiana State License for Pesticide Application. Provide:
  - a. Certified Applicator
  - b. Certificate of financial responsibility
7. Storage space is NOT provided at VANIHCS for lawn care and snow removal equipment and supplies.
8. VANIHCS is not responsible for maintenance or repair of contractor's equipment due to wear and tear, due to any damage incurred in the performance of the contract, or for any loss or damage to material or equipment while at VANIHCS.
9. Upon arrival at VA Medical Center, all Contractor personnel shall check – in with the COR during normal business hours or the AOD after hours and weekends. Contractor shall also provide a written service ticket for all services rendered at completion of service.
  - i. During normal business hours, the COR, Engineering or AOD shall contact the Contractor when unscheduled services are needed.

- ii During non-business hours the AOD shall contact the Contractor when non-scheduled services are needed.

B. Place of Performance

VANIHCS, 2121 Lake Avenue, Fort Wayne, IN 46805

C. Period of Performance

Period of performance is November 1, 2026 through October 31, 2027 with four (4) one-year option periods to be exercised at the discretion of the Government.

D. Qualifications of Key Personnel

Contractor shall be licensed/certified by the State of Indiana to apply lawn chemical treatments.

E. Hours of Operation

1. Contractor shall provide snow and ice removal, snow hauling off campus and deicing services twenty-four (24) hours per day, seven (7) days per week including holidays.
2. Lawn care services shall be completed during or after normal business hours, or during weekends from approximately April 1 through October 31.
3. VA normal business hours are 7:00 a.m. to 4:30 p.m., Monday through Friday, excluding the National Holidays listed below and any other day declared a National Holiday by the President of the United States:

|                 |                                       |
|-----------------|---------------------------------------|
| New Years' Day  | Martin Luther King                    |
| Presidents' Day | Labor Day                             |
| Memorial Day    | Independence Day                      |
| Columbus Day    | Thanksgiving Day                      |
| Christmas Day   | Veterans' Day                         |
| Juneteenth      | Any Other Day Designated by the POTUS |

F. Check-in

Upon arrival at VA Medical Center, all Contractor personnel shall check-in with the COR during normal business hours or the AOD after hours and weekends. Contractor shall also provide a written service ticket for all services rendered at completion of service.

1. During normal business hours, the COR or AOD shall contact the Contractor when nonscheduled service is needed.
2. During non-business hours the AOD shall contact the Contractor when non-scheduled service is needed.

G. Protection of Government Property

1. Contractor shall take special care to protect Government property to include all exterior porches, turf, walkways and pathways, vegetation and any government property where the services are performed. Equipment that can cause damage to asphalt, blacktop or concrete (i.e. equipment with metal tracks) is prohibited. Tire chains are permitted.
2. Contractor shall be responsible for any damage to concrete curbs, sidewalks, ramps, signage and sign poles, storm drains, utilities serving the facility, manhole and utility access covers, flower beds, shrubbery, trees, parking space stops and areas of lawn and grass incurred during the performance of the contract. Damage to trees and shrubs from trimming shall be repaired by the contractor. The contractor shall be responsible for replacing the damaged plant with a plant of the same size and type. Plant replacement shall occur within 15 days of damage noticed.
3. All damage shall be reported to the Contracting Officer and COR with-in the same business day of the occurrence. Report of damage shall be reported to the COR or AOD within one (1) hour if said damage results in a safety hazard and needs immediate attention. Damage resulting from Contractor operations shall be repaired by the Contractor to the satisfaction of the Contracting Officer at no additional cost to the Government.



## **OFFEROR INFORMATION PAGE**

**MATERIALS:** Offeror materials consist of Request for Quote forms and any issued amendments which will be provided via email.

**SUBMISSION REQUIREMENT:**

The following documents are to be included in the proposal submission: one (1) original fully completed and signed SF 1449 Offer page, acknowledgment of all amendments either via entering data in acknowledgement of amendment block in the SF 1449 continuation pages and the signed Amendment and attaching that to the original SF 1449 Offer page; one (1) original completed bid schedule if one is provided, otherwise bid amounts are entered in block 24 of the SF1442 Offer page; one (1) original completed/wet ink signed SF 24 Bid Bond (if required); Offerors are responsible for ensuring and verifying their proposal and all required proposal documents are received at the email address designated in block 19 of the SF 1449 Solicitation and by the date and time specified in block 8 of the SF 1449 Solicitation (subject to amendment). Additionally a copy of the attached VAAR 852.219-75 Limitations of Subcontracting Certification must be completed.

**PROJECT INFORMATION:**

**PROJECT TITLE AND NUMBER:** NIHCS FW GROUNDS MAINTENANCE/ SNOW REMOVAL SERVICES

**PROJECT LOCATION:** Fort Wayne VA Medical Center, 2121 Lake Avenue Fort Wayne, IN 46805

**PROJECT SCOPE OF WORK:** The contractor shall provide all supervision, labor, tools, equipment, vehicles, transportation and chemicals necessary to provide full service snow and ice removal and lawn care services. Lawn care services shall maintain healthy grass, trees, shrubs and plants and present a clean, neat and professional appearance. Snow and ice removal services shall be performed in a manner that provides a safe and satisfactory environment. Safety devices shall be utilized at all times on all equipment. The snow and ice removal encompasses snow and ice removal from all designated sites, deicing of all designated areas, removal of snow and ice from all parking lots, drives, walkways, sidewalks, crosswalks and all ramps. Snow and ice removal shall take place approximately from November 1 through March 31st on an as needed basis. These are estimated times and contractor shall be available before November 1st and after March 31st if snow and ice fall occurs before or after those time frames. Lawn and landscaping care includes mowing, edging, trimming, mulching, weeding, over seeding, fertilizing, herbicide and pesticide control, and removal of debris. Lawn care shall take place from April 1st through October 31st. These are estimated times and contractor shall be available before April 1st and after October 31st if the growing season occurs before or after those time frames. See SOW above for additional information.

**NORTH AMERICAN INDUSTRY CLASSIFICATION SYSTEM CODE: (NAICS):** 561730 (Landscaping Services)

**SMALL BUSINESS SIZE STANDARD:** \$9.5M

**PERIOD OF PERFORMANCE:** 365 calendar days from contractor receipt of Notice to Proceed Plus 4 Possible Option Years for Entire Project Scope.

**LIQUIDATED DAMAGES:** ( ) YES or (X) NO (reference Contract Clause FAR Subpart 11-4)

**RESTRICTION ON SUBMISSION AND USE OF EQUAL PRODUCTS:** ( ) YES or (X) NO (Reference VAAR 852.236-90)

**PERFORMANCE PERIOD:** 365 calendar days from receipt of the Notice to Proceed for the base year of the project. Plus 365 calendar days for each additional option year.

**RESPONSIBILITY REQUIREMENTS:** A responsibility check will be accomplished for the apparent awardee prior to award. Checks of the VIP database (to ensure apparently successful offeror is a verified Service Disabled Veteran Owned Small Business), System for Award Management (SAM) database, Online Representations and Certifications, and Excluded Parties List System to insure registrations are current, valid, and no debarment records exist, and Experian (to check Intelliscore Plus Score to insure it is below a risk value of 4). Any information retrieved or received by the Government that would be cause for negative or unsatisfactory responsibility rating may result in the offeror being determined ineligible for award.

**WAGE DETERMINATION:** IN2015-4781 12/03/2025

**SITE VISIT:** An organized site visit is scheduled for May 1<sup>st</sup> at 9:00AM, attendees will meet at the engineering building for a walk through. (Subject to change VIA Amendment)

**REQUESTS FOR INFORMATION (RFI):** To obtain clarifications and/or additional information concerning the contract requirements, specifications and/or drawings, submit a written **RFI utilizing the RFI Form attached to this Solicitation, send via email to samuel.galbreath@va.gov** RFIs must be specific identifying section, paragraph and page no. of the specifications or cite the drawing number and must be in question format. All RFIs submitted shall include the solicitation number and title, contractor name, city, state, telephone, email address, date submitted, and the RFI question(s). RFI responses will be submitted via email.

**RFI Deadline is 05/13/2026 at 4:30 EST**

**There will be no responses to late RFI's unless the CO determines providing a response would be beneficial to the VA.**

### **SECURITY**

**BACKGROUND INVESTIGATIONS:** All contractor employees are subject to the same level of investigation as VA employees who have access to VA Sensitive Information. The level of background investigation is commensurate with the level of access needed to perform the

statement of work. This requirement is also applicable to all subcontractor personnel requiring the same level of access.

Levels and associated types of Background Investigations:

- If the project requires that workers have only limited physical access to the VA facility for a period of one year or less, a local flash badge with fingerprint check is issued.
- If the project requires that workers require un-supervised, logical and/or physical access for 180 consecutive or aggregate days in a 365-day period, over a 3-year period, a background investigation is required (Special Agency Check (SAC)) which must be completed prior to being allowed access.
- If the project requires that workers have un-supervised, full-time, logical, and/or physical access for more than 6 months or more than 180 aggregate days in a one-year period, a background investigation is required (Special Agency Check and National Agency Check with Written Inquiries (NACI)) and access is not allowed until a favorable SAC completion.

## B.2 PRICE/COST SCHEDULE

### ITEM INFORMATION

| ITEM<br>NUMBER | DESCRIPTION OF<br>SUPPLIES/SERVI<br>CES                                                    | QUANTI<br>TY | UNI<br>T | UNIT PRICE         | AMOUNT |
|----------------|--------------------------------------------------------------------------------------------|--------------|----------|--------------------|--------|
| 0001           |                                                                                            | 1.00         | YR       |                    |        |
|                | Fort Wayne Grounds/Snow Removal Base<br>Contract Period: Base<br>POP Begin:<br>POP End:    |              |          |                    |        |
| 1001           |                                                                                            | 1.00         | YR       |                    |        |
|                | Fort Wayne Grounds/Snow Removal OY1<br>Contract Period: Option 1<br>POP Begin:<br>POP End: |              |          |                    |        |
| 2001           |                                                                                            | 1.00         | YR       |                    |        |
|                | Fort Wayne Grounds/Snow Removal OY2<br>Contract Period: Option 2<br>POP Begin:<br>POP End: |              |          |                    |        |
| 3001           |                                                                                            | 1.00         | YR       |                    |        |
|                | Fort Wayne Grounds/Snow Removal OY3<br>Contract Period: Option 3<br>POP Begin:<br>POP End: |              |          |                    |        |
| 4001           |                                                                                            | 1.00         | YR       |                    |        |
|                | Fort Wayne Grounds/Snow Removal OY4<br>Contract Period: Option 4<br>POP Begin:<br>POP End: |              |          |                    |        |
|                |                                                                                            |              |          | <b>GRAND TOTAL</b> |        |

## B.3 DELIVERY SCHEDULE

| ITEM<br>NUMBER | SHIPPING INFORMATION | QUANTITY | DELIVERY<br>DATE |
|----------------|----------------------|----------|------------------|
| 0001           |                      | 1.00     |                  |

|             |      |
|-------------|------|
| <b>1001</b> | 1.00 |
| <b>2001</b> | 1.00 |
| <b>3001</b> | 1.00 |
| <b>4001</b> | 1.00 |

## SECTION C - CONTRACT CLAUSES

### C.1 52.212-4 CONTRACT TERMS AND CONDITIONS—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (NOV 2023) (DEVIATION)

(a) *Definitions.* The clause at Federal Acquisition Regulation (FAR) 52.202-1, Definitions, is incorporated by reference.

(b) *Inspection/Acceptance.* The Contractor shall only tender for acceptance those items that conform to the requirements of this contract. The Government reserves the right to inspect or test any supplies or services that have been tendered for acceptance. The Government may require repair or replacement of nonconforming supplies or reperformance of nonconforming services at no increase in contract price. If repair/replacement or reperformance will not correct the defects or is not possible, the Government may seek an equitable price reduction or adequate consideration for acceptance of nonconforming supplies or services. The Government must exercise its post acceptance rights—

(1) Within a reasonable time after the defect was discovered or should have been discovered; and

(2) Before any substantial change occurs in the condition of the item, unless the change is due to the defect in the item.

(c) *Assignment.* The Contractor or its assignee may assign its rights to receive payment due as a result of performance of this contract to a bank, trust company, or other financing institution, including any Federal lending agency in accordance with the Assignment of Claims Act (31 U.S.C. 3727). However, when a third party makes payment (*e.g.*, use of the Governmentwide commercial purchase card), the Contractor may not assign its rights to receive payment under this contract.

(d) *Changes.* Changes in the terms and conditions of this contract may be made only by written agreement of the parties.

(e) *Disputes.* This contract is subject to 41 U.S.C. chapter 71, Contract Disputes. Failure of the parties to this contract to reach agreement on any request for equitable adjustment, claim, appeal, or action arising under or relating to this contract shall be a dispute to be resolved in accordance with the clause FAR 52.233-1, Disputes, which is incorporated in this contract by reference. The Contractor shall proceed diligently with performance of this contract, pending final resolution of any dispute arising under the contract.

(f) *Excusable delays.* The Contractor shall be liable for default unless nonperformance is caused by an occurrence beyond the reasonable control of the Contractor and without its fault or

negligence. Examples of occurrences include acts of God or the public enemy, acts of the Government in either its sovereign or contractual capacity, fires, floods, epidemics, quarantine restrictions, strikes, unusually severe weather, and delays of common carriers. When an excusable delay occurs, the Contractor shall—

- (1) Notify the Contracting Officer in writing as soon as possible;
- (2) Remedy the delay as quickly as possible; and
- (3) Notify the Contracting Officer when the occurrence is over.

(g) *Invoice.* The Government will handle invoices according to the Prompt Payment Act (31 U.S.C. 3903) and 5 CFR part 1315. The Contractor shall submit invoices to the address designated in the contract to receive invoices. An invoice must include the information required by 5 CFR part 1315.9(b).

(h) *Patent indemnity.* The Contractor shall indemnify the Government and its officers, employees, and agents against liability, including costs, for actual or alleged direct or contributory infringement of, or inducement to infringe, any United States or foreign patent, trademark, or copyright, arising out of the performance of this contract, provided the Contractor is reasonably notified of such claims and proceedings.

(i) *Payment—*

(1) *Items accepted.* Payment shall be made for items accepted by the Government that have been delivered to the delivery destinations set forth in this contract.

(2) *Prompt payment.* The Government will make payment in accordance with the Prompt Payment Act ( [31 U.S.C. 3903](#)) and prompt payment regulations at 5 CFR part 1315.

(3) *Discount.* In connection with any discount offered for early payment, time shall be computed from the date of the invoice. For the purpose of computing the discount earned, payment shall be considered to have been made on the date that appears on the payment check or the specified payment date if an electronic funds transfer payment is made.

(4) *Overpayments.* If the Contractor becomes aware of a duplicate contract financing or invoice payment or that the Government has otherwise overpaid on a contract financing or invoice payment, the Contractor shall—

- (i) Remit the overpayment amount to the payment office cited in the contract along with a description of the overpayment including the—

- (A) Circumstances of the overpayment (*e.g.*, duplicate payment, erroneous payment, liquidation errors, date(s) of overpayment);

- (B) Affected contract number and delivery order number, if applicable;
- (C) Affected line item or subline item, if applicable;
- (D) Contractor point of contact; and

(ii) Provide a copy of the remittance and supporting documentation to the Contracting Officer.

*(5) Interest.*

(i) All amounts that become payable by the Contractor to the Government under this contract shall bear simple interest from the date due until paid unless paid within 30 days of becoming due. The interest rate shall be the interest rate established by the Secretary of the Treasury as provided in 41 U.S.C. 7109, which is applicable to the period in which the amount becomes due, as provided in (i)(6)(v) of this clause, and then at the rate applicable for each six-month period as fixed by the Secretary until the amount is paid.

(ii) The Government may issue a demand for payment to the Contractor upon finding a debt is due under the contract.

(iii) *Final decisions.* The Contracting Officer will issue a final decision as required by FAR part 33 if–

(A) The Contracting Officer and the Contractor are unable to reach agreement on the existence or amount of a debt within 30 days;

(B) The Contractor fails to liquidate a debt previously demanded by the Contracting Officer within the timeline specified in the demand for payment unless the amounts were not repaid because the Contractor has requested an installment payment agreement; or

(C) The Contractor requests a deferment of collection on a debt previously demanded by the Contracting Officer (see FAR part 32).

(iv) If a demand for payment was previously issued for the debt, the demand for payment included in the final decision shall identify the same due date as the original demand for payment.

(v) Amounts shall be due at the earliest of the following dates:

(A) The date fixed under this contract.

(B) The date of the first written demand for payment, including any demand for payment resulting from a termination for cause.



(vi) The interest charge shall be computed for the actual number of calendar days involved beginning on the due date and ending on-

(A) The date on which the designated office receives payment from the Contractor;

(B) The date of issuance of a Government check to the Contractor from which an amount otherwise payable has been withheld as a credit against the contract debt; or

(C) The date on which an amount withheld and applied to the contract debt would otherwise have become payable to the Contractor.

(vii) The interest charge made under this clause may be reduced under the procedures for interest credits prescribed in FAR part 32 in effect on the date of this contract.

(j) *Risk of loss.* Unless the contract specifically provides otherwise, risk of loss or damage to the supplies provided under this contract shall remain with the Contractor until, and shall pass to the Government upon—

(1) Delivery of the supplies to a carrier, if transportation is f.o.b. origin; or

(2) Delivery of the supplies to the Government at the destination specified in the contract, if transportation is f.o.b. destination.

(k) *Taxes.* The contract price includes all applicable Federal, State, and local taxes and duties.

(l) *Termination for the Government's convenience.* The Government reserves the right to terminate this contract, or any part hereof, for its sole convenience. In the event of such termination, the Contractor shall immediately stop all work and shall immediately cause any and all of its suppliers and subcontractors to cease work. Subject to the terms of this contract, the Contractor shall be paid a percentage of the contract price reflecting the percentage of the work performed prior to the notice of termination, plus reasonable charges the Contractor can demonstrate to the satisfaction of the Government using its standard record keeping system, have resulted from the termination. The Contractor shall not be required to comply with the cost accounting standards or contract cost principles for this purpose. This paragraph does not give the Government any right to audit the Contractor's records. The Contractor shall not be paid for any work performed or costs incurred which reasonably could have been avoided.

(m) *Termination for cause.* The Government may terminate this contract, or any part hereof, for cause in the event of any default by the Contractor, or if the Contractor fails to comply with any contract terms and conditions, or fails to provide the Government, upon request, with

adequate assurances of future performance. The Government will send a cure notice to the Contractor, unless the reason for the termination is late delivery. In the event of termination for cause, the Government shall not be liable to the Contractor for any amount for supplies or services not accepted, and the Contractor shall be liable to the Government for any and all rights and remedies provided by law. If it is determined that the Government improperly terminated this contract for default, such termination shall be deemed a termination for convenience.

(n) *Title*. Unless specified elsewhere in this contract, title to items furnished under this contract shall pass to the Government upon acceptance, regardless of when or where the Government takes physical possession.

(o) *Warranty*. The Contractor warrants and implies that the items delivered under this contract are merchantable and fit for use for the particular purpose described in this contract.

(p) *Limitation of liability*. Except as otherwise provided by an express warranty, the Contractor will not be liable to the Government for consequential damages resulting from any defect or deficiencies in accepted items.

(q) *Compliance with laws unique to Government contracts*. The Contractor agrees to comply with 31 U.S.C. 1352 relating to limitations on the use of appropriated funds to influence certain Federal contracts; 40 U.S.C. chapter 37, Contract Work Hours and Safety Standards; 41 U.S.C. chapter 87, Kickbacks; 49 U.S.C. 40118, Government-financed air transportation; and 41 U.S.C. chapter 21 relating to procurement integrity.

(r) *Order of precedence*. Any inconsistencies in this solicitation or contract shall be resolved by giving precedence in the following order:

- (1) The schedule of supplies/services;
- (2) The Disputes, Payments, Invoice, Compliance with Laws Unique to Government Contracts, and Unauthorized Obligations paragraphs of this clause;
- (3) Other contract clauses incorporated in the solicitation or contract;
- (4) Addenda to this solicitation or contract;
- (5) Solicitation provisions incorporated in the solicitation;
- (6) Other paragraphs of this clause;
- (7) Other documents, exhibits, and attachments; and
- (8) The specification.

(s) *Unauthorized obligations*.

(1) Except as stated in paragraph (s)(2) of this clause, when any supply or service acquired under this contract is subject to any End User License Agreement (EULA), Terms of Service (TOS), or similar legal instrument or agreement, that includes any clause requiring the Government to indemnify the Contractor or any person or entity for damages, costs, fees, or any other loss or liability that would create an Anti-Deficiency Act violation (31 U.S.C. 1341), the following shall govern:

(i) Any such clause is unenforceable against the Government.

(ii) Neither the Government nor any Government-authorized end user shall be deemed to have agreed to such clause by virtue of it appearing in the EULA, TOS, or similar legal instrument or agreement. If the EULA, TOS, or similar legal instrument or agreement is invoked through an "I agree" click box or other comparable mechanism (e.g., "click-wrap" or "browse-wrap" agreements), execution does not bind the Government or any Government authorized end user to such clause.

(iii) Any such clause is deemed to be stricken from the EULA, TOS, or similar legal instrument or agreement.

(2) Paragraph (s)(1) of this clause does not apply to indemnification by the Government that is expressly authorized by statute and specifically authorized under applicable agency regulations and procedures.

(t) *Comptroller General examination of record.* This paragraph applies if this contract was awarded using other than sealed bid procedures and is in excess of the simplified acquisition threshold on the date of award of this contract.

(1) The Comptroller General of the United States, or an authorized representative of the Comptroller General, shall have access to and right to examine any of the Contractor's directly pertinent records involving transactions related to this contract.

(2) The Contractor shall make available at its offices, at all reasonable times, the records, materials, and other evidence for examination, audit, or reproduction, until 3 years after final payment under this contract or for any shorter period specified in FAR part 4, longer period required by statute, or periods specified in other clauses of this contract. If this contract is completely or partially terminated, the records relating to the work terminated shall be made available for 3 years after any resulting final termination settlement. Records relating to appeals under the disputes clause or to litigation or the settlement of claims arising under or relating to this contract shall be made available until such appeals, litigation, or claims are finally resolved.

(3) As used in this clause, records include books, documents, accounting procedures and practices, and other data, regardless of type and regardless of form. This clause does not

require the Contractor to create or maintain any record that the Contractor does not maintain in the ordinary course of business or pursuant to a provision of law.

(u) *Incorporation by reference.* The Contractor's representations and certifications, including those completed electronically via the System for Award Management (SAM), are incorporated by reference into the contract.

(End of Clause)

#### ADDENDUM to FAR 52.212-4 CONTRACT TERMS AND CONDITIONS—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

Clauses that are incorporated by reference (by Citation Number, Title, and Date), have the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available.

The following clauses are incorporated into 52.212-4 as an addendum to this contract:

#### **C.2 52.217-9 OPTION TO EXTEND THE TERM OF THE CONTRACT (MAR 2000)**

(a) The Government may extend the term of this contract by written notice to the Contractor within 30; provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least 365 days before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed five (5) years.

(End of Clause)

#### **C.3 52.222-42 STATEMENT OF EQUIVALENT RATES FOR FEDERAL HIRES (MAY 2014)**

In compliance with the Service Contract Labor Standards statute and the regulations of the Secretary of Labor (29 CFR part 4), this clause identifies the classes of service employees expected to be employed under the contract and states the wages and fringe benefits payable to each if they were employed by the contracting agency subject to the provisions of 5 U.S.C. 5341 or 5332.

This Statement is for Information Only:

It is not a Wage Determination

| <b>Employee Class</b> | <b>Monetary Wage—Fringe Benefits</b> |
|-----------------------|--------------------------------------|
| Accounting Clerk I    | \$17.85                              |

|                              |         |
|------------------------------|---------|
| Laborer, Grounds Maintenance | \$17.37 |
| Gardener                     | \$22.12 |
| Pruner                       | \$15.83 |

(End of Clause)

#### C.4 52.240-91 SECURITY PROHIBITIONS AND EXCLUSIONS (NOV 2025) (DEVIATION)

(a) *Definitions.* As used in this clause—

*American Security Drone Act-covered foreign entity* means an entity included on a list that the Federal Acquisition Security Council (FASC) develops and maintains and publishes in the System for Award Management (SAM) at <https://www.sam.gov> (section 1822 of Pub. L. 118-31, 41 U.S.C. 3901 note prec.).

*Backhaul* means intermediate links between the core network, or backbone network, and the small subnetworks at the edge of the network (e.g., connecting cell phones/towers to the core telephone network). Backhaul can be wireless (e.g., microwave) or wired (e.g., fiber optic, coaxial cable, Ethernet).

*Covered application* means the social networking service TikTok or any successor application or service developed or provided by ByteDance Limited or an entity owned by ByteDance Limited.

*Covered article*, as defined in 41 U.S.C. 4713(k), means:

- (1) Information technology, as defined in 40 U.S.C. 11101, including cloud computing services of all types;
- (2) Telecommunications equipment or telecommunications service, as those terms are defined in section 3 of the Communications Act of 1934 (47 U.S.C. 153);
- (3) The processing of information on a Federal or non-Federal information system, subject to the requirements of the Controlled Unclassified Information program (see 32 CFR part 2002); or
- (4) Hardware, systems, devices, software, or services that include embedded or incidental information technology.

*Covered foreign country* means The People's Republic of China.

*Covered telecommunications equipment or services* means—

- (1) Telecommunications equipment produced by Huawei Technologies Company or ZTE Corporation (or any subsidiary or affiliate of such entities);
- (2) For the purpose of public safety, security of Government facilities, physical security surveillance of critical infrastructure, and other national security purposes, video surveillance and telecommunications equipment produced by Hytera Communications Corporation, Hangzhou Hikvision Digital Technology Company, or Dahua Technology Company (or any subsidiary or affiliate of such entities);

(3) Telecommunications or video surveillance services provided by such entities or using such equipment; or

(4) Telecommunications or video surveillance equipment or services produced or provided by an entity that the Secretary of Defense, in consultation with the Director of National Intelligence or the Director of the Federal Bureau of Investigation, reasonably believes to be an entity owned or controlled by, or otherwise connected to, the government of a covered foreign country.

*Critical technology* means—

(1) Defense articles or defense services included on the United States Munitions List set forth in the International Traffic in Arms Regulations under subchapter M of chapter I of title 22, Code of Federal Regulations;

(2) Items included on the Commerce Control List set forth in Supplement No. 1 to part 774 of the Export Administration Regulations under subchapter C of chapter VII of title 15, Code of Federal Regulations, and controlled—

(i) Pursuant to multilateral regimes, including for reasons relating to national security, chemical and biological weapons proliferation, nuclear nonproliferation, or missile technology; or

(ii) For reasons relating to regional stability or surreptitious listening;

(3) Specially designed and prepared nuclear equipment, parts and components, materials, software, and technology covered by part 810 of title 10, Code of Federal Regulations (relating to assistance to foreign atomic energy activities);

(4) Nuclear facilities, equipment, and material covered by part 110 of title 10, Code of Federal Regulations (relating to export and import of nuclear equipment and material);

(5) Select agents and toxins covered by part 331 of title 7, Code of Federal Regulations, part 121 of title 9 of such Code, or part 73 of title 42 of such Code; or

(6) Emerging and foundational technologies controlled pursuant to section 1758 of the Export Control Reform Act of 2018 (50 U.S.C. 4817).

*FASC-prohibited unmanned aircraft system* means an unmanned aircraft system manufactured or assembled by an American Security Drone Act—covered foreign entity.

*FASCSA order* means any of the following orders issued under the Federal Acquisition Supply Chain Security Act (FASCSA) requiring removing covered articles from executive agency information systems or excluding one or more named sources or named covered articles from executive agency procurement actions, as described in 41 CFR 201-1.303(d) and (e):

(1) The Secretary of Homeland Security may issue FASCSA orders that apply to civilian agencies, to the extent not covered by paragraph (2) or (3) of this definition. This type of FASCSA order may be referred to as a Department of Homeland Security (DHS) FASCSA order.

(2) The Secretary of Defense may issue FASCSA orders that apply to the Department of Defense (DoD) and national security systems other than sensitive compartmented information systems. This type of FASCSA order may be referred to as a DoD FASCSA order.

(3) The Director of National Intelligence (DNI) may issue FASCSA orders that apply to the intelligence community and sensitive compartmented information systems, to the extent not covered by paragraph (2) of this definition. This type of FASCSA order may be referred to as a DNI FASCSA order.

*Information technology*, as defined in 40 U.S.C. 11101(6)—

(1) Means any equipment or interconnected system or subsystem of equipment, used in the automatic acquisition, storage, analysis, evaluation, manipulation, management, movement, control, display, switching, interchange, transmission, or reception of data or information by the executive agency, if the equipment is used by the executive agency directly or is used by a contractor under a contract with the executive agency that requires the use—

(i) Of that equipment; or

(ii) Of that equipment to a significant extent in the performance of a service or the furnishing of a product;

(2) Includes computers, ancillary equipment (including imaging peripherals, input, output, and storage devices necessary for security and surveillance), peripheral equipment designed to be controlled by the central processing unit of a computer, software, firmware and similar procedures, services (including support services), and related resources; but

(3) Does not include any equipment acquired by a Federal contractor incidental to a Federal contract.

*Intelligence community*, as defined by 50 U.S.C. 3003(4), means the following—

(1) The Office of the Director of National Intelligence;

(2) The Central Intelligence Agency;

(3) The National Security Agency;

(4) The Defense Intelligence Agency;

(5) The National Geospatial-Intelligence Agency;

(6) The National Reconnaissance Office;

(7) Other offices within the Department of Defense for the collection of specialized national intelligence through reconnaissance programs;

(8) The intelligence elements of the Army, the Navy, the Air Force, the Marine Corps, the Coast Guard, the Federal Bureau of Investigation, the Drug Enforcement Administration, and the Department of Energy;

(9) The Bureau of Intelligence and Research of the Department of State;

(10) The Office of Intelligence and Analysis of the Department of the Treasury;

(11) The Office of Intelligence and Analysis of the Department of Homeland Security; or

(12) Such other elements of any department or agency as may be designated by the President, or designated jointly by the Director of National Intelligence and the head of the department or agency concerned, as an element of the intelligence community.

*Interconnection arrangement* means arrangements governing the physical connection of two or more networks to allow the use of another's network to hand off traffic where it is ultimately delivered (e.g., connecting a customer of telephone provider A to a customer of telephone company B) or sharing data and other information resources.

*Kaspersky Lab-covered article* means any hardware, software, or service that—

(1) Is developed or provided by a Kaspersky Lab-covered entity;

(2) Includes any hardware, software, or service developed or provided in whole or in part by a Kaspersky Lab-covered entity; or

(3) Contains components using any hardware or software developed in whole or in part by a Kaspersky Lab-covered entity.

*Kaspersky Lab-covered entity* means—

(1) Kaspersky Lab;

(2) Any successor entity to Kaspersky Lab, including any change in name, e.g., "Kaspersky";

(3) Any entity that controls, is controlled by, or is under common control with Kaspersky Lab; or

(4) Any entity of which Kaspersky Lab has a majority ownership.

*National security system*, as defined in 44 U.S.C. 3552, means any information system (including any telecommunications system) used or operated by an agency or by a contractor of an agency, or other organization on behalf of an agency—

(1) The function, operation, or use of which involves intelligence activities; involves cryptologic activities related to national security; involves command and control of military forces; involves equipment that is an integral part of a weapon or weapons system; or is critical to the direct fulfillment of military or intelligence missions, but does not include a system that is to be used for routine administrative and business applications (including payroll, finance, logistics, and personnel management applications); or

(2) Is protected at all times by procedures established for information that have been specifically authorized under criteria established by an Executive order or an Act of Congress to be kept classified in the interest of national defense or foreign policy.

*Roaming* means cellular communications services (e.g., voice, video, data) received from a visited network when unable to connect to the facilities of the home network either because signal coverage is too weak or because traffic is too high.



*Sensitive compartmented information* means classified information concerning or derived from intelligence sources, methods, or analytical processes, which is required to be handled within formal access control systems established by the Director of National Intelligence.

*Sensitive compartmented information system* means a national security system authorized to process or store sensitive compartmented information.

*Source* means a non-Federal supplier, or potential supplier, of products or services, at any tier.

*Subsidiary* means an entity in which more than 50 percent of the entity is owned directly by a parent corporation or through another subsidiary of a parent corporation.

*Substantial or essential component* means any component necessary for the proper function or performance of a piece of equipment, system, or service.

*Unmanned aircraft* means an aircraft that is operated without the possibility of direct human intervention from within or on the aircraft (49 U.S.C. 44801(11)).

*Unmanned aircraft system* means an unmanned aircraft and associated elements (including communication links and the components that control the unmanned aircraft) that are required for the operator to operate safely and efficiently in the national airspace system (49 U.S.C. 44801(12)).

(b) *Prohibitions on providing or using specific products or services in performance of contract.* Unless a waiver or exception applies, the Contractor is prohibited from providing any products or services to the Government or using in the performance of the contract any of the following:

(1) A covered application on any information technology owned or managed by the Government, or on any information technology used or provided by the Contractor under this contract, including equipment provided by the Contractor's employees (section 102 of Division R of the Consolidated Appropriations Act, 2023 (Pub. L. 117-328));

(2) A Kaspersky Lab-covered article (Section 1634 of Division A of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91));

(3) Covered telecommunications equipment or services used as a substantial or essential component of any system, or as critical technology as part of any system (paragraphs (a)(1)(A) of section 889 of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232)). This does not prohibit contractors from providing—

(i) A service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(c) Prohibition on unmanned aircraft systems manufactured or assembled by American Security Drone Act—covered foreign entities.

(1) Prohibition. The Contractor is prohibited from—

(i) Delivering any FASC-prohibited unmanned aircraft system, which includes unmanned aircraft (i.e., drones) and associated elements (sections 1823 and 1826 of American Security Drone Act of 2023, within the National Defense Authorization Act for Fiscal Year 2024, Pub. L. 118-31, Div. A, Title XVIII, Subtitle B, 41 U.S.C. 3901 note prec.);

(ii) On or after December 22, 2025, operating a FASC-prohibited unmanned aircraft system in the performance of the contract (section 1824 of Pub. L. 118-31); and

(iii) On or after December 22, 2025, using Federal funds to procure or operate a FASC-prohibited unmanned aircraft system (section 1825 of Pub. L. 118-31).

(2) *Procedures.* The Contractor shall search SAM for the FASC-maintained list of American Security Drone Act—covered foreign entities before proposing, or using in performance of the contract, any unmanned aircraft system. Also, the Contractor shall ensure any effort or expenditure associated with a FASC-prohibited unmanned aircraft system is consistent with a corresponding exemption, exception, or waiver determination expressly stated in the contract.

(3) *Exemptions, exceptions, and waivers.* The prohibitions in paragraph (c) of this clause do not apply where the agency has determined an exemption, exception, or waiver applies, and the contract indicates that such a determination has been made. See sections 1823 through 1825 and 1832 of Public Law 118-31 for statutory requirements pertaining to exemptions, exceptions, and waivers.

(d) *Prohibition on using or providing specific products or services or conducting certain transactions regardless of connection to contract.*

(1) *Certain telecommunications and video surveillance equipment, systems, or services.*

(i) Unless an applicable waiver has been issued by the Government, the Contractor cannot use any equipment, systems, or services that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system (paragraph (a)(1)(B) of section 889 of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232)).

(ii) This prohibition applies to using covered telecommunications equipment or services, regardless of whether that use is in performance of work under a Federal contract. This does not prohibit the contractor from using—

(A) A service that connects to the facilities of a third party, such as backhaul, roaming, or interconnection arrangements; or

(B) Telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(2) *Office of Foreign Assets Control Restrictions.*

(i) Except as authorized by the Office of Foreign Assets Control (OFAC) in the Department of the Treasury, the Contractor shall not acquire, for use in the performance of this contract, any supplies or services if any proclamation, Executive order, or statute administered by OFAC, or if

OFAC's implementing regulations at 31 CFR chapter V, would prohibit such a transaction by a person subject to the jurisdiction of the United States.

(ii) Except as authorized by OFAC, most transactions involving Cuba, Iran, and Sudan are prohibited, as are most imports from Burma or North Korea, into the United States or its outlying areas.

(A) For lists of entities and individuals subject to economic sanctions, see OFAC's List of Specially Designated Nationals and Blocked Persons at <https://home.treasury.gov/policy-issues/financial-sanctions/specially-designated-nationals-and-blocked-persons-list-sdn-human-readable-lists>.

(B) For more information about these restrictions, as well as updates, see OFAC's regulations at 31 CFR chapter V and at <https://home.treasury.gov/policy-issues/office-of-foreign-assets-control-sanctions-programs-and-information>.

(C) To conduct electronic screens of potential parties to regulated transactions, see the consolidated screening list at <https://www.trade.gov/consolidated-screening-list>, which consolidates multiple export screening lists of the Departments of Commerce, State, and the Treasury.

(3) *Sudan prohibition.* The Contractor is prohibited from conducting any restricted business operations in Sudan in accordance with Accountability and Divestment Act of 2007 (Pub. L. 110-174).

(4) *Iran prohibitions.*

(i) Unless an exception applies according to paragraph (d)(4)(iii) or the Government grants a waiver, the contractor shall not engage in certain activities or transactions relating to Iran (section 6(b)(1)(A) of Iran Sanctions Act (50 U.S.C. 1701 note)).

(ii) Unless an exception applies according to paragraph (d)(4)(iii) or the Government grants a waiver, contractor shall not export certain sensitive technology to Iran, as determined by the President, and has an active exclusion in SAM (22 U.S.C. 8515).

(iii) The prohibition in paragraphs (d)(4)(i) and (d)(4)(ii) do not apply if the acquisition is subject to trade agreements and the offeror certifies that all the offered products are designated country end products or designated country construction material (see part 25).

(iv) Unless an exception applies or the Government grants a waiver, contractors are prohibited from knowingly engaging in any significant transaction (i.e., over \$15,000) with Iran's Revolutionary Guard Corps or any of its officials, agents, or affiliates, the property and interests in property of which are blocked according to the International Emergency Economic Powers Act (section 6(b)(1)(B) of Iran Sanctions Act (50 U.S.C. 1701 note)).

(e) *Governmentwide exclusion and removal orders.*

(1) Unless the Government has issued an applicable waiver, contractors shall not provide or use as part of the performance of the contract any covered article, or any products or services

produced or provided by a source, if the covered article or the source is prohibited by an applicable FASCSA order as follows:

(i) For solicitations and contracts awarded by a Department of Defense contracting office, DoD FASCSA orders apply.

(ii) For all other solicitations and contracts, DHS FASCSA orders apply.

(2) The Contractor shall search for the phrase "FASCSA order" in the System for Award Management (SAM) at <https://www.sam.gov> to locate applicable FASCSA orders.

(3) The Government may identify in the solicitation other FASCSA orders that are not in SAM, which are effective and apply to the solicitation and resulting contract.

(4) A FASCSA order issued after the date of solicitation applies to this contract only if added by an amendment to the solicitation or modification to the contract (see FAR 40.204-1(c)).

(f) *Reasonable inquiry*. The contractor shall conduct a reasonable inquiry to determine if there are any prohibited products or services. The inquiry will look at any information in the entity's possession but does not need to include an internal or third-party audit.

(g) *Removal of prohibited products and services*. For Federal Supply Schedules, Governmentwide acquisition contracts, multi-agency contracts or any other procurement instrument intended for use by multiple agencies, upon notification from the Contracting Officer, during the performance of the contract, the Contractor shall promptly make any necessary changes or modifications to remove any product or service produced or provided by a source that this clause prohibits.

(h) *General report*.

(1) If the Contractor identifies or is notified by any source, (including a subcontractor at any tier), that any product or service provided or used (or to be provided or used) during contract performance does not comply with any prohibition in this clause, then the Contractor shall report the following information, or as much information is known, in writing to the contracting office as identified in paragraph (h)(2) within 72 hours:

(i) Contract number and order number, if applicable;

(ii) The specific prohibition the product or service is not complying with;

(iii) A description of the products or services that the Contractor identifies or has reason to suspect is prohibited (include brand; model number, such as the original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable);

(iv) The entity that produced the product or service (include entity name, unique entity identifier, Contractor and Government Entity (CAGE) code, facilities responsible for design, fabrication, assembly, packaging, and test of the product, and whether the entity was the OEM or a distributor (provide manufacturer codes and distributor codes used for the product));

(v) Description of the functionality of the product or service and how that functionality impacts the risk to the product or service;

(vi) An explanation of any factors relevant to determining if the product or service should be permitted by an applicable exception, exemption, or waiver (if the contractor would like the Government to consider a waiver, and asks for such a waiver);

(vii) Whether alternative products or services are available that would comply with the prohibition;

(viii) If the product or service is related to item maintenance, include the following information on the item being maintained:

(A) Brand;

(B) Model number, OEM number, manufacturer part number, or wholesaler number; and

(C) Item description, as applicable.

(ix) Any readily available information about mitigation actions implemented or recommended.

(2) If a report must be submitted to a contracting office, the Contractor shall submit the report as follows:

(i) If a Department of Defense contracting office, the Contractor shall report to the website at <https://dibnet.dod.mil>.

(ii) For all other contracting offices, the Contractor shall report to the Contracting Officer.

(iii) For indefinite delivery contracts, the Contractor shall report to both the contracting office for the indefinite delivery contract and the contracting office for any affected order.

(3) If the report provided does not contain any of the information required by paragraph (h)(1) of this clause, and the contractor later discovers new information that is required by paragraph (h)(1) of this clause, then the contractor shall submit a subsequent report within 72 hours of discovering the new information.

(4) The contractor shall also report the information in paragraph (h)(1) if the contractor wishes to ask for a waiver of the requirements of a new FASCSA order being applied through modification.

(i) *New FASCSA orders report.*

(1) During contract performance, the Contractor shall review SAM at least once every three months, or as advised by the Contracting Officer, to check for covered articles subject to FASCSA order(s), or for products or services produced by a source subject to FASCSA order(s) not currently identified under paragraph (e) of this clause.

(2) If the Contractor identifies a new FASCSA order(s) that could impact their supply chain, then the Contractor shall conduct a reasonable inquiry to identify whether a covered article or product or service produced or provided by a source subject to the FASCSA order(s) was

provided to the Government or used during contract performance. The inquiry will look at any information in the entity's possession but does not need to include an internal or third-party audit.

(3) The Contractor shall submit a report to the contracting office identified in paragraph (h)(2) of this clause if the Contractor identifies, including through any notification by a subcontractor at any tier, that a covered article or product or service produced or provided by a source was provided to the Government or used during contract performance and is subject to a FASCSA order(s). For indefinite delivery contracts, the Contractor shall report to both the contracting office for the indefinite delivery contract and the contracting office for any affected order. The Contractor shall report the following information within 72 hours for each covered article or each product or service produced or provided by a source, where the covered article or source is subject to a FASCSA order:

- (i) Contract number and order number, if applicable;
- (ii) Name of the covered article or source subject to a FASCSA order;
- (iii) The specific FASCSA order the product or service does not comply with;
- (iv) The elements of (h)(1)(iii) through (ix) of this clause.

(j) Subcontracts. The Contractor shall insert the substance of this clause, including this paragraph (j) but excluding subparagraphs (d)(1) and (i)(1), in all subcontracts and other contractual instruments, including subcontracts for acquiring commercial products or commercial services.

(End of Provision)

## **C.5 52.240-93 BASIC SAFEGUARDING OF COVERED CONTRACTOR INFORMATION SYSTEMS (DEVIATION) (NOV 2025)**

(a) Definitions. As used in this clause—

*Covered contractor information system* means an information system that is owned or operated by a contractor that processes, stores, or transmits Federal contract information.

*Federal contract information*—

(1) Means information, not intended for public release, that is provided by or generated for the Government under a contract to develop or deliver a product or service to the Government; but

(2) Does not include information provided by the Government to the public (such as on public websites) or simple transactional information (such as information necessary to process payments).

*Information* means any communication or representation of knowledge such as facts, data, or opinions, in any medium or form, including textual, numerical, graphic, cartographic, narrative, or audiovisual (Committee on National Security Systems Instruction (CNSSI) 4009).

*Information system* means a discrete set of information resources organized for the collection, processing, maintenance, use, sharing, dissemination, or disposition of information (44 U.S.C. 3502).

*Safeguarding* means measures or controls that are prescribed to protect information systems.

*(b) Safeguarding requirements.*

(1) Basic requirements. The Contractor shall safeguard its covered contractor information systems by implementing, at minimum, the following security controls:

(i) Limit information system access to authorized users, processes acting on behalf of authorized users, or devices (including other information systems).

(ii) Limit information system access to the types of transactions and functions that authorized users are permitted to execute.

(iii) Verify and control/limit connections to and use of external information systems.

(iv) Control information posted or processed on publicly accessible information systems.

(v) Identify information system users, processes acting on behalf of users, or devices.

(vi) Authenticate (or verify) the identities of those users, processes, or devices, as a prerequisite to allowing access to organizational information systems.

(vii) Sanitize or destroy information system media containing Federal Contract Information before disposal or release for reuse.

(viii) Limit physical access to organizational information systems, equipment, and the respective operating environments to authorized individuals.

(ix) Escort visitors and monitor visitor activity; maintain audit logs of physical access; and control and manage physical access devices.

(x) Monitor, control, and protect organizational communications (i.e., information transmitted or received by organizational information systems) at the external boundaries and key internal boundaries of the information systems.

(xi) Implement subnetworks for publicly accessible system components that are physically or logically separated from internal networks.

(xii) Identify, report, and correct information and information system flaws in a timely manner.

(xiii) Provide protection from malicious code at appropriate locations within organizational information systems.

(xiv) Update malicious code protection mechanisms when new releases are available.

(xv) Perform periodic scans of the information system and real-time scans of files from external sources as files are downloaded, opened, or executed.

(2) Other requirements. This clause does not relieve the Contractor of any other specific safeguarding requirements specified by Federal departments and agencies relating to covered contractor information systems generally or other Federal safeguarding requirements for controlled unclassified information (CUI) as established by Executive Order 13556.

(c) Subcontracts. The Contractor shall include the substance of this clause, including this paragraph (c), in subcontracts under this contract (including subcontracts for the acquisition of commercial products, other than commercially available off-the-shelf items, or commercial services), in which the subcontractor may have Federal contract information residing in or transiting through its information system.

(End of Provision)

## C.6 852.204-72 PERSONNEL VETTING AND CREDENTIALING (MAR 2026)

### (a) Definitions. As used in this clause —

*VA Information system* is the same as information system and means, pursuant to 38 U.S.C. 5727, a discrete set of information resources organized for the collection, processing, maintenance, use, sharing, dissemination, or disposition of information whether automated or manual.

*VA sensitive information* means all VA data, on any storage media or in any form or format, which requires protection due to the risk of harm that could result from inadvertent or deliberate disclosure, alteration, or destruction of the information and includes sensitive personal information. The term includes information where improper use or disclosure could adversely affect the ability of VA to accomplish its mission, proprietary information, records about individuals requiring protection under various confidentiality provisions such as the Privacy Act and the HIPAA Privacy Rule, and information that can be withheld under the Freedom of Information Act. Examples of VA sensitive information include the following: individually-identifiable medical, benefits, and personnel information; financial, budgetary, research, quality assurance, confidential commercial, critical infrastructure, investigatory, and law enforcement information; information that is confidential and privileged in litigation such as information protected by the deliberative process privilege, attorney work-product privilege, and the attorney-client privilege; and other information which, if released, could result in violation of law or harm or unfairness to any individual or group, or could adversely affect the national interest or the conduct of Federal programs.

(b) *General*. Contractor personnel assigned to work for or on behalf of VA must undergo a background investigation commensurate with the risk and sensitivity level designation associated with the work to be performed at the level indicated in the contract. The Contractor and subcontractors shall comply with VA Directive/Handbook 0710, Personnel Security and Suitability Program, which can be accessed at: <https://vaww.va.gov/vapubs/index.cfm>

(c) *Risk and Sensitivity Levels*. The following table identifies the risk and sensitivity levels that apply to any personnel providing services under this contract.  
\*VA Administrations, organizations and staff offices will use the OPM Position Designation Tool.

#### **Positions/ Tasks Designated as Non-Sensitive Positions - Tier 1/Low Risk**



[Contracting Officer to enter position or task number, if all positions fulfilling a task are Tier 1/Low Risk]

**Positions/ Tasks Designated as Non-Sensitive Positions - Tier 2/Mod Risk**

[Contracting Officer to enter position or task number, if all positions fulfilling a task are Tier 2/Mod Risk]

**Positions/Tasks Designated as Non-Sensitive Positions - Tier 4/High Risk**

[Contracting Officer to enter position or task number, if all positions fulfilling a task are Tier 4/High Risk]

Security clearances are granted to individuals with a specific requirement for access to classified material (for example, Confidential, Secret and Top Secret). Contractor personnel that are required to obtain a security clearance will be subject to a Tier 3 or Tier 5 investigation. The following sensitivity designations have been assigned for the identified Tier 3 and Tier 5 required by this contract:

Tier 3: [Not applicable]

Tier 5: [Not applicable]

*(d) Fitness.* The results from a background investigation are used to determine if an individual's fitness is sufficient for that individual to perform work for or on behalf of VA in the position identified in this contract. Contractor fitness determinations are made in accordance with 5 CFR Part 731.202.

Fitness requirements for employment are separate and distinct from job qualifications. If a Contractor or subcontractor employee is found to be unsuitable or unfit to provide services under this contract, the Contractor shall immediately remove the employee from working on this contract and take those necessary steps that restrict the employee's logical access to VA data, information, VA sensitive information, or information technology or VA information systems containing such data or information.

The Contractor shall advise the employee that they are not permitted to access any VA controlled building or real property in relation to this contract.

The removal of an unfit Contractor or subcontractor employee does not alleviate the Contractor from satisfying the requirements of this contract. The Government will not reimburse the Contractor for any costs associated with the recruitment/replacement of an employee or subcontractor employee who is found to be unfit.

*(e) Identification Cards.* The Government will provide a Personal Identification Verification (PIV) card or other identification card, as necessary, to fit Contractor personnel who require physical access to VA facilities and/or logical access to VA data, information, VA sensitive information, or information technology or VA information systems containing such data or information. Contractor and subcontractor personnel

shall prominently display their PIV/identification card on their persons while working at a VA facility and shall present their PIV/identification card for inspection upon request by a VA official. The Contractor must surrender the employee or subcontractor employee's PIV/identification card in accordance with the requirements set forth in Directive/Handbook 0735 when any of the following events occur:

1. When no longer needed for contract performance.
2. Upon completion of the Contractor/subcontractor employee's employment.
3. Upon contract completion or termination.

(f) *Lost/stolen.* Immediately upon detection, the Contractor shall report a lost or stolen PIV/identification card to the Government authorities as identified in Directive/Handbook 0735. Within 48 hours of reporting the lost/stolen PIV/identification card, the Contractor shall submit to the Program Manager an incident report that describes the relevant facts and circumstances regarding the loss/theft. If the loss/theft was reported by the Contractor to the local police, the Contractor shall further submit a copy of the final police report to the Program Manager within 48 hours of the report being made available by the local police department. The Government will not reimburse the Contractor for any costs that result from lost/stolen PIV/identification card(s).

(g) *Regular Reporting.* The Contractor shall submit a status report to PIV Sponsor within 5 working days after the end of each calendar quarter and as requested by the Government in order to initiate contract closeout procedures. The report must provide the status of each contractor/subcontractor employee who is required to have a PIV/identification card during the performance of the contract. The report shall identify the Contractor and the contract number, and list the following status for each contractor/subcontractor employee who holds a PIV/identification card under this contract:

1. Contractor/subcontractor employee name.
2. Name of VA facility where Contractor/subcontractor employee works, if applicable.
3. Date background check submitted for Contractor/subcontractor employee.
4. Date PIV/identification card issued to Contractor/subcontractor employee.
5. Contractor/subcontractor employee's PIV/identification card number, as applicable.
6. Date Contractor/subcontractor employee no longer has need for PIV/identification card.
7. Date Contractor notified VA that PIV/identification card is no longer required.
8. Date Contractor returned PIV/identification card was returned to VA.

(h) *Flow down of clause.* The Contractor shall include the substance of this clause in subcontracts, third-party agreements, and BAA's, in which subcontractors, third-party servicers/employees, and business associates will perform functions where they will have physical access to a VA facility or logical access to VA data, information, VA sensitive information, or information technology or VA information system containing such data or information.

(End of clause)

## **C.7 VAAR 852.242-71 ADMINISTRATIVE CONTRACTING OFFICER (OCT 2020)**

The Contracting Officer reserves the right to designate an Administrative Contracting Officer (ACO) for the purpose of performing certain tasks/duties in the administration of the contract. Such designation will be in writing through an ACO Letter of Delegation and will identify the responsibilities and limitations of the ACO. A copy of the ACO Letter of Delegation will be furnished to the Contractor.

(End of Clause)

## C.8 52.252-6 AUTHORIZED DEVIATIONS IN CLAUSES (NOV 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of any VAAR (48 CFR Chapter FEDERAL ACQUISITION REGULATION (48 CFR Chapter 1)) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of Clause)

## C.9 52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

<https://www.acquisition.gov/browse/index/far>  
<https://www.va.gov/oal/library/vaar/>

(End of Clause)

| <u>FAR<br/>Number</u> | <u>Title</u>                                                                                                                                   | <u>Date</u> |
|-----------------------|------------------------------------------------------------------------------------------------------------------------------------------------|-------------|
| 52.203-6              | RESTRICTIONS ON SUBCONTRACTOR SALES TO THE GOVERNMENT                                                                                          | JUN 2020    |
| 52.203-17             | CONTRACTOR EMPLOYEE WHISTLEBLOWER RIGHTS                                                                                                       | NOV 2023    |
| 52.204-9              | PERSONAL IDENTITY VERIFICATION OF CONTRACTOR PERSONNEL                                                                                         | JAN 2011    |
| 52.204-13             | SYSTEM FOR AWARD MANAGEMENT MAINTENANCE                                                                                                        | OCT 2018    |
| 52.209-6              | PROTECTING THE GOVERNMENT'S INTEREST WHEN SUBCONTRACTING WITH CONTRACTORS DEBARRED, SUSPENDED, PROPOSED FOR DEBARMENT, OR VOLUNTARILY EXCLUDED | JAN 2025    |
| 52.209-10             | PROHIBITION ON CONTRACTING WITH INVERTED DOMESTIC CORPORATIONS                                                                                 | NOV 2015    |
| 52.217-8              | OPTION TO EXTEND SERVICES                                                                                                                      | NOV 1999    |
| 52.219-4              | NOTICE OF PRICE EVALUATION PREFERENCE FOR HUBZONE SMALL BUSINESS CONCERNS (DEVIATION)                                                          | NOV 2025    |
| 52.219-14             | LIMITATIONS ON SUBCONTRACTING                                                                                                                  | OCT 2022    |
| 52.222-3              | CONVICT LABOR                                                                                                                                  | JUN 2003    |
| 52.222-35             | EQUAL OPPORTUNITY FOR VETERANS (DEVIATION)                                                                                                     | NOV 2025    |
| 52.222-37             | EMPLOYMENT REPORTS ON VETERANS (DEVIATION)                                                                                                     | NOV 2025    |
| 52.222-36             | EQUAL OPPORTUNITY FOR WORKERS WITH DISABILITIES                                                                                                | JUN 2020    |
| 52.222-41             | SERVICE CONTRACT LABOR STANDARDS                                                                                                               | AUG 2018    |
| 52.222-50             | COMBATING TRAFFICKING IN PERSONS                                                                                                               | OCT 2025    |
| 52.222-55             | MINIMUM WAGES FOR CONTRACTOR WORKERS UNDER EXECUTIVE ORDER 14026                                                                               | JAN 2022    |
| 52.222-62             | PAID SICK LEAVE UNDER EXECUTIVE ORDER 13706                                                                                                    | JAN 2022    |
| 52.223-1              | BIOBASED PRODUCT CERTIFICATION                                                                                                                 | MAY 2024    |

|             |                                                                                                                |          |
|-------------|----------------------------------------------------------------------------------------------------------------|----------|
| 52.223-2    | REPORTING OF BIOBASED PRODUCTS UNDER SERVICE AND CONSTRUCTION CONTRACTS                                        | MAY 2024 |
| 52.223-5    | POLLUTION PREVENTION AND RIGHT-TO-KNOW INFORMATION                                                             | MAY 2024 |
| 52.223-23   | SUSTAINABLE PRODUCTS AND SERVICES                                                                              | MAY 2024 |
| 52.226-8    | ENCOURAGING CONTRACTOR POLICIES TO BAN TEXT MESSAGING WHILE DRIVING                                            | MAY 2024 |
| 52.232-33   | PAYMENT BY ELECTRONIC FUNDS TRANSFER—SYSTEM FOR AWARD MANAGEMENT                                               | OCT 2018 |
| 52.232-40   | PROVIDING ACCELERATED PAYMENTS TO SMALL BUSINESS SUBCONTRACTORS                                                | MAR 2023 |
| 52.233-3    | PROTEST AFTER AWARD                                                                                            | AUG 1996 |
| 52.233-4    | APPLICABLE LAW FOR BREACH OF CONTRACT CLAIM                                                                    | OCT 2004 |
| 52.237-2    | PROTECTION OF GOVERNMENT BUILDINGS, EQUIPMENT, AND VEGETATION                                                  | APR 1984 |
| 52.244-6DEV | SUBCONTRACTS FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES                                                   | OCT 2025 |
| 852.201-70  | CONTRACTING OFFICER'S REPRESENTATIVE                                                                           | DEC 2022 |
| 852.203-70  | COMMERCIAL ADVERTISING                                                                                         | MAY 2018 |
| 852.204-70  | PERSONAL IDENTITY VERIFICATION OF CONTRACTOR PERSONNEL                                                         | MAY 2020 |
| 852.219-73  | VA NOTICE OF TOTAL SET-ASIDE FOR CERTIFIED SERVICE-DISABLED VETERAN-OWNED SMALL BUSINESSES (DEVIATION)         | JAN 2023 |
| 852.219-75  | VA NOTICE OF LIMITATIONS ON SUBCONTRACTING—CERTIFICATE OF COMPLIANCE FOR SERVICES AND CONSTRUCTION (DEVIATION) | JAN 2023 |
| 852.232-72  | ELECTRONIC SUBMISSION OF PAYMENT REQUESTS                                                                      | NOV 2018 |
| 852.237-75  | KEY PERSONNEL                                                                                                  | OCT 2019 |

(End of Addendum to 52.212-4)

## **SECTION D - CONTRACT DOCUMENTS, EXHIBITS, OR ATTACHMENTS**

**ATTACHMENT I - SCA 20154781.**

**ATTACHMENT II - RFI.**

**ATTACHMENT III - LIMITATION OF SUBCONTRACTING CERTIFICATION  
VAAR 852.219-75.**

**ATTACHMENT IV - FORT WAYNE SITE MAP VETERANS ADMINISTRATION.**

## SECTION E - SOLICITATION PROVISIONS

### E.1 52.212-1 INSTRUCTIONS TO OFFERORS—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (SEP 2023)(DEVIATION)

(a) *Submission of offers.* Submit signed and dated offers to the office specified in this solicitation at or before the exact time specified in this solicitation. As a minimum, offers shall include—

- (1) The solicitation number;
- (2) The name, address, telephone number of the Offeror;
- (3) The Offeror's Unique Entity Identifier (UEI) and, if applicable, Electronic Funds Transfer (EFT) indicator;
- (4) Information necessary to evaluate the factors contained in the provision at 52.212-2 or as described in the solicitation;
- (5) Responses to provisions that require Offeror completion of information, representations, and certifications (other than those collected via the System for Award Management (SAM)); and
- (6) A statement specifying the extent of agreement with all terms, conditions, and provisions included in the solicitation and any solicitation amendments.

(b) *Period for acceptance of offers.* The Offeror agrees to hold the prices in its offer firm for 60 calendar days from the date specified for receipt of offers, unless another time period is specified in an addendum to the solicitation.

(c) *Late submissions, modifications, revisions, and withdrawals of offers.*

(1) Offerors are responsible for submitting offers and any modifications or revisions to the Government office designated in the solicitation by the time specified in the solicitation.

(2) Any offer, modification, or revision received after the time specified for receipt of offers is "late" and will not be considered unless it is received before award is made and the Contracting Officer determines that accepting the late offer would not unduly delay the acquisition. However, a late modification of an otherwise successful offer that makes its terms more favorable to the Government will be considered at any time it is received and may be accepted.

(3) If an emergency or unanticipated event interrupts normal Government processes so that offers cannot be received at the Government office designated for receipt of offers by the

exact time specified in the solicitation, and urgent Government requirements preclude amendment of the solicitation or other notice of an extension of the closing date, the time specified for receipt of offers will be deemed to be extended to the same time of day specified in the solicitation on the first work day on which normal Government processes resume.

(4) Offerors may withdraw their offers by written notice to the Government received at any time before award.

(d) *Contract award (not applicable to Invitation for Bids)*. The Government intends to evaluate offers and award a contract without discussions with Offerors. Therefore, the Offeror's initial offer should contain the Offeror's best terms. However, the Government reserves the right to conduct discussions, if necessary. The Government may reject any or all offers if such action is in the public interest, accept other than the lowest offer, and waive informalities and minor irregularities in offers received.

(e) *Debriefings*. If a postaward debriefing is given to requesting Offerors, the Government will disclose the following information, if applicable:

(1) The agency's evaluation of the significant weak or deficient factors in the debriefed Offeror's offer.

(2) The overall evaluated cost or price and technical rating of the successful Offeror and the debriefed Offeror and past performance information on the debriefed Offeror.

(3) The overall ranking of all Offerors when any ranking was developed by the agency during source selection.

(4) A summary of the rationale for award.

(5) For acquisitions of commercial products, the make and model of the product to be delivered by the successful Offeror.

(6) Reasonable responses to relevant questions posed by the debriefed Offeror as to whether the agency followed source-selection procedures set forth in the solicitation, applicable regulations, and other applicable authorities.

(End of Provision)

#### ADDENDUM to FAR 52.212-1 INSTRUCTIONS TO OFFERORS—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

Provisions that are incorporated by reference (by Citation Number, Title, and Date), have the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available.

The following provisions are incorporated into 52.212-1 as an addendum to this solicitation:

## E.2 52.216-1 TYPE OF CONTRACT (DEVIATION) (NOV 2025)

The Government contemplates award of a Firm-Fixed-Price contract resulting from this solicitation.

(End of Provision)

## E.3 52.219-1 SMALL BUSINESS PROGRAM REPRESENTATIONS (FEB 2024)

(a) *Definitions.* As used in this provision—

*Economically disadvantaged women-owned small business (EDWOSB) concern* means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States and who are economically disadvantaged in accordance with 13 CFR part 127, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300. It automatically qualifies as a women-owned small business concern eligible under the WOSB Program.

*Service-disabled veteran-owned small business (SDVOSB) concern* means a small business concern—

(1)(i) Not less than 51 percent of which is owned and controlled by one or more service-disabled veterans or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more service-disabled veterans; and

(ii) The management and daily business operations of which are controlled by one or more service-disabled veterans or, in the case of a service-disabled veteran with permanent and severe disability, the spouse or permanent caregiver of such veteran or;

(2) A small business concern eligible under the SDVOSB Program in accordance with 13 CFR part 128 (see subpart 19.14).

(3) *Service-disabled veteran*, as used in this definition, means a veteran, as defined in 38 U.S.C. 101(2), with a disability that is service-connected, as defined in 38 U.S.C. 101(16), and who is registered in the Beneficiary Identification and Records Locator Subsystem, or successor system that is maintained by the Department of Veterans Affairs' Veterans Benefits Administration, as a service-disabled veteran.

*Service-disabled veteran-owned small business (SDVOSB) concern eligible under the SDVOSB Program* means an SDVOSB concern that—

(1) Effective January 1, 2024, is designated in the System for Award Management (SAM) as certified by the Small Business Administration (SBA) in accordance with 13 CFR 128.300; or

(2) Has represented that it is an SDVOSB concern in SAM and submitted a complete application for certification to SBA on or before December 31, 2023.

*Service-disabled veteran-owned small business (SDVOSB) Program* means a program that authorizes contracting officers to limit competition, including award on a sole-source basis, to SDVOSB concerns eligible under the SDVOSB Program.



*Small business concern—*

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and the size standard in paragraph (b) of this provision.

(2) *Affiliates*, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

*Small disadvantaged business concern*, consistent with 13 CFR 124.1001, means a small business concern under the size standard applicable to the acquisition, that—

(1) Is at least 51 percent unconditionally and directly owned (as defined at 13 CFR 124.105) by—

(i) One or more socially disadvantaged (as defined at 13 CFR 124.103) and economically disadvantaged (as defined at 13 CFR 124.104) individuals who are citizens of the United States, and

(ii) Each individual claiming economic disadvantage has a net worth not exceeding the threshold at 13 CFR 124.104(c)(2) after taking into account the applicable exclusions set forth at 13 CFR 124.104(c)(2); and

(2) The management and daily business operations of which are controlled (as defined at 13 CFR 124.106) by individuals who meet the criteria in paragraphs (1)(i) and (ii) of this definition.

*Veteran-owned small business concern* means a small business concern—

(1) Not less than 51 percent of which is owned by one or more veterans (as defined at 38 U.S.C. 101(2)) or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more veterans; and

(2) The management and daily business operations of which are controlled by one or more veterans.

*Women-owned small business concern* means a small business concern—

(1) That is at least 51 percent owned by one or more women; or, in the case of any publicly owned business, at least 51 percent of the stock of which is owned by one or more women; and

(2) Whose management and daily business operations are controlled by one or more women.

*Women-owned small business (WOSB) concern eligible under the WOSB Program* (in accordance with 13 CFR part 127) means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States, and the

concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300.

(b)(1) The North American Industry Classification System (NAICS) code for this acquisition is 561730.

(2) The small business size standard is \$9.5 Million.

(3) The small business size standard for a concern that submits an offer, other than on a construction or service acquisition, but proposes to furnish an end item that it did not itself manufacture, process, or produce (*i.e.*, nonmanufacturer), is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition—

(i) Is set aside for small business and has a value above the simplified acquisition threshold;

(ii) Uses the HUBZone price evaluation preference regardless of dollar value, unless the offeror waives the price evaluation preference; or

(iii) Is an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

*(c) Representations.*

(1) The offeror represents as part of its offer that—

(i) It ☐ is, ☐ is not a small business concern; or

(ii) It ☐ is, ☐ is not a small business joint venture that complies with the requirements of 13 CFR 121.103(h) and 13 CFR 125.8(a) and (b). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: \_\_\_\_\_.]

(2) *[Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.]* The offeror represents that it ☐ is, ☐ is not, a small disadvantaged business concern as defined in 13 CFR 124.1001.

(3) *[Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.]* The offeror represents as part of its offer that it ☐ is, ☐ is not a women-owned small business concern.

(4) *Women-owned small business (WOSB) joint venture eligible under the WOSB Program.* The offeror represents as part of its offer that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). *[The offeror shall enter the name and unique entity identifier of each party to the joint venture: \_\_\_\_\_.]*

(5) *Economically disadvantaged women-owned small business (EDWOSB) joint venture.* The offeror represents as part of its offer that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR part 127.506(a) through (c). *[The offeror shall enter the name and unique entity identifier of each party to the joint venture: \_\_\_\_\_.]*

(6) *Veteran-owned small business concern.* [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents as part of its offer that it ☐ is, ☐ is not a veteran-owned small business concern.

(7) *SDVOSB concern.* [Complete only if the offeror represented itself as a veteran-owned small business concern in paragraph (c)(6) of this provision.] The offeror represents as part of its offer that it ☐ is, ☐ is not an SDVOSB concern.

(8) *SDVOSB joint venture eligible under the SDVOSB Program.* [Complete only if the offeror represented itself as a SDVOSB concern in paragraph (c)(7) of this provision.] The offeror represents as part of its offer that it ☐ is, ☐ is not a SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [The offeror shall enter the name and unique entity identifier of each party to the joint venture:\_\_\_\_.]

(9) *HUBZone small business concern.* [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents, as part of its offer, that—

(i) It ☐ is, ☐ is not a HUBZone small business concern listed, on the date of this representation, as having been certified by SBA as a HUBZone small business concern in the Dynamic Small Business Search and SAM, and will attempt to maintain an employment rate of HUBZone residents of 35 percent of its employees during performance of a HUBZone contract (see 13 CFR 126.200(e)(1)); and

(ii) It ☐ is, ☐ is not a HUBZone joint venture that complies with the requirements of 13 CFR Part 126.616(a) through (c). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: \_\_\_\_\_.] Each HUBZone small business concern participating in the HUBZone joint venture shall provide representation of its HUBZone status.

(d) *Notice.*

Under 15 U.S.C. 645(d), any person who misrepresents a firm's status as a business concern that is small, HUBZone small, small disadvantaged, service-disabled veteran-owned small, economically disadvantaged women-owned small, or women-owned small eligible under the WOSB Program in order to obtain a contract to be awarded under the preference programs established pursuant to section 8, 9, 15, 31, and 36 of the Small Business Act or any other provision of Federal law that specifically references section 8(d) for a definition of program eligibility, shall—

- (1) Be punished by imposition of fine, imprisonment, or both;
- (2) Be subject to administrative remedies, including suspension and debarment; and
- (3) Be ineligible for participation in programs conducted under the authority of the Act.

(End of Provision)

#### E.4 52.225-2 BUY AMERICAN CERTIFICATE (OCT 2022)

(a)(1) The Offeror certifies that each end product, except those listed in paragraph (b) of this provision, is a domestic end product and that each domestic end product listed in paragraph (c) of this provision contains a critical component.

(2) The Offeror shall list as foreign end products those end products manufactured in the United States that do not qualify as domestic end products. For those foreign end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select “no”.

(3) The Offeror shall separately list the line item numbers of domestic end products that contain a critical component (see FAR 25.105).

(4) The terms “commercially available off-the-shelf (COTS) item,” “critical component,” “domestic end product,” “end product,” and “foreign end product” are defined in the clause of this solicitation entitled “Buy American—Supplies.”

(b) Foreign End Products:

| Line Item No. | Country of origin | Exceeds 55% domestic content (yes/no) |
|---------------|-------------------|---------------------------------------|
|               |                   |                                       |
|               |                   |                                       |
|               |                   |                                       |

*[List as necessary]*

(c) Domestic end products containing a critical component:

| Line Item No. |
|---------------|
|               |
|               |
|               |

*[List as necessary]*

(d) The Government will evaluate offers in accordance with the policies and procedures of part 25 of the Federal Acquisition Regulation.

(End of Provision)

#### E.5 52.240-90 SECURITY PROHIBITIONS AND EXCLUSIONS REPRESENTATIONS AND CERTIFICATIONS (NOV 2025) (DEVIATION)

(a) *Definitions.* As used in this provision—

*Backhaul, covered article, covered telecommunications equipment or services, critical technology, FASCSA order, Intelligence community, interconnection arrangements, national security system, roaming, sensitive compartmented information, sensitive compartmented information system, source, and substantial or essential component* have the meanings provided in the clause 52.240-91, Security Prohibitions and Exclusions.

*Business operations* means engaging in commerce in any form, including by acquiring, developing, maintaining, owning, selling, possessing, leasing, or operating equipment, facilities, personnel, products, services, personal property, real property, or any other apparatus of business or commerce.

*Marginalized populations of Sudan* means—

(1) Adversely affected groups in regions authorized to receive assistance under section 8(c) of the Darfur Peace and Accountability Act (Pub. L. 109-344) (50 U.S.C. 1701 note); and

(2) Marginalized areas in Northern Sudan described in section 4(9) of such Act.

*Restricted business operations* means business operations in Sudan that include power production activities, mineral extraction activities, oil-related activities, or the production of military equipment, as those terms are defined in the Sudan Accountability and Divestment Act of 2007 (Pub. L. 110-174). Restricted business operations do not include business operations that the person (as that term is defined in Section 2 of the Sudan Accountability and Divestment Act of 2007) conducting the business can demonstrate—

(1) Are conducted under contract directly and exclusively with the regional government of southern Sudan;

(2) Are conducted under specific authorization from the Office of Foreign Assets Control in the Department of the Treasury, or are expressly exempted under Federal law from the requirement to be conducted under such authorization;

(3) Consist of providing goods or services to marginalized populations of Sudan;

(4) Consist of providing goods or services to an internationally recognized peacekeeping force or humanitarian organization;

(5) Consist of providing goods or services that are used only to promote health or education; or

(6) Have been voluntarily suspended.

*Sensitive technology*—

(1) Means hardware, software, telecommunications equipment, or any other technology that is to be used specifically—

(i) To restrict the free flow of unbiased information in Iran; or

(ii) To disrupt, monitor, or otherwise restrict speech of the people of Iran; and

(2) Does not include information or informational materials the export of which the President does not have the authority to regulate or prohibit pursuant to section 203(b)(3) of the International Emergency Economic Powers Act (50 U.S.C. 1702(b)(3)).

*(b) Procedures.*

(1) *Covered telecommunications and video surveillance.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at <https://www.sam.gov> for entities excluded from receiving federal awards for “covered telecommunications equipment or services.”

*(2) FASCSA Orders.*

(i) The Offeror shall search in SAM for the phrase “FASCSA order” for any covered article, or any products or services produced or provided by a source, if there is an applicable FASCSA order described in paragraph (e) of FAR 52.240-91, Security Prohibitions and Exclusions.

(ii) The Offeror shall review the solicitation for any FASCSA orders that are not in SAM but are effective and apply to the solicitation and resultant contract (see FAR 40.204-1(c)(2)).

(iii) FASCSA orders issued after the date of solicitation do not apply unless added by an amendment to the solicitation.

*(c) Covered telecommunications equipment or services representations.* By submission of its offer, the Offeror represents that, after conducting a reasonable inquiry (that looks at any information in the Offeror’s possession but does not need to include an internal or third-party audit)—

(1) It will not provide covered telecommunications equipment or services to the Government in the performance of any contract, subcontract or other contractual instrument resulting from this solicitation, except as waived by the solicitation, or as disclosed in paragraph (g); and

(2) It does not use covered telecommunications equipment or services, or use any equipment, system, or service that uses covered telecommunications equipment or services, except as waived by the solicitation, or as disclosed in paragraph (g).

*(d) FASCSA Representation.* By submission of this offer, the offeror represents that it has conducted a reasonable inquiry, and that the offeror does not propose to provide or use in response to this solicitation any covered article, or any products or services produced or provided by a source, if the covered article or the source is prohibited by an applicable FASCSA order in effect on the date the solicitation was issued, except as waived by the solicitation, or as disclosed in paragraph (g). A reasonable inquiry will look at any information in the offeror’s possession but does not need to include an internal or third-party audit.

*(e) Sudan certification.* By submission of its offer, the offeror certifies, after conducting a reasonable inquiry (that looks at any information in the offeror’s possession but does not need to include an internal or third-party audit), that the offeror does not conduct any restricted business operations in Sudan.

*(f) Iran Representation and Certifications.*

(1) Except as provided in paragraph (f)(2) of this provision or if a waiver has been granted in accordance with FAR 40.203-3, the offeror, after conducting a reasonable inquiry (that looks at any information in the offeror's possession but does not need to include an internal or third-party audit), by submission of its offer—

(i) Represents, to the best of its knowledge and belief, that the offeror does not export any sensitive technology to the government of Iran or any entities or individuals owned or controlled by, or acting on behalf or at the direction of, the government of Iran;

(ii) Certifies that the offeror, or any person (as defined at section 15 of the Iran Sanctions Act of 1996, Pub. L. 104-172, 50 U.S.C. 1701 note) owned or controlled by the offeror, does not engage in any activities for which sanctions may be imposed under section 5 of the Act. These sanctioned activities are in the areas of development of the petroleum resources of Iran, production of refined petroleum products in Iran, sale and provision of refined petroleum products to Iran, and contributing to Iran's ability to acquire or develop certain weapons or technologies; and

(iii) Certifies that the offeror, and any person owned or controlled by the offeror, does not knowingly engage in any transaction that exceeds \$15,000 with Iran's Revolutionary Guard Corps or any of its officials, agents, or affiliates, the property and interests in property of which are blocked pursuant to the International Emergency Economic Powers Act (50 U.S.C. 1701 et seq.) (see OFAC's Specially Designated Nationals and Blocked Persons List at <https://www.treasury.gov/resource-center/sanctions/SDN-List/Pages/default.aspx>)

(2) Exception for trade agreements. The representation and certification requirements of paragraph (f)(1) of this provision do not apply if—

(i) This solicitation includes a trade agreements notice or certification (e.g., 52.225-6, Trade Agreements Certificate); and

(ii) The offeror has certified that all the offered products to be supplied are designated country end products or designated country construction material.

(iii) The offeror shall email questions concerning sensitive technology to the Department of State at [CISADA106@state.gov](mailto:CISADA106@state.gov).

(g) *Disclosure.*

(1) If the Offeror is not able to represent compliance with the prohibitions in paragraphs (c) or (d), then the Offeror shall disclose within 72 hours to the contracting office identified in paragraph (g)(2) the following information for each product or service not compliant:

(i) Contract number and order number, if applicable;

(ii) Identification of whether this disclosure relates to paragraph (c) on covered telecommunication equipment or services, or to paragraph (d) on FASCSA orders;

(iii) A description of the products or services that the Contractor identifies or has reason to suspect is prohibited (include brand; model number, such as the original equipment

manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable);

(iv) The entity that produced the product or service (include entity name, unique entity identifier, Contractor and Government Entity (CAGE) code, facilities responsible for design, fabrication, assembly, packaging, and test of the product, and whether the entity was the OEM or a distributor (provide manufacturer codes and distributor codes used for the product));

(v) Description of the functionality of the product or service and how that functionality impacts the risk to the product or service;

(vi) An explanation of any factors relevant to determining if the product or service should be permitted by an applicable exception, exemption, or waiver (if the offeror would like the Government to consider a waiver);

(vii) Whether alternative products or services are available that would be compliant with the prohibition;

(viii) If the product or service is related to item maintenance, include the following information on the item being maintained:

(A) Brand;

(B) Model number, OEM number, manufacturer part number, or wholesaler number; and

(C) Item description, as applicable.

(ix) Any readily available information about mitigation actions undertaken or recommended.

(2) If a disclosure is required to be submitted to a contracting office, the offeror shall submit the disclosure as follows:

(i) If a Department of Defense contracting office, the offeror shall submit the disclosure to the website at <https://dibnet.dod.mil>.

(ii) For all other contracting offices, the Offeror shall submit the disclosure to the Contracting Officer.

(3) If the disclosure provided does not contain any of the information required by paragraph (1), and the Offeror later discovers new information that is required by paragraph (1), then the Offeror shall submit a subsequent disclosure within 72 hours of discovering the new information.

(h) *Executive agency review of disclosures.* The Contracting Officer will review disclosures provided in paragraph (g) to determine if any applicable waiver may be sought. The Contracting Officer may choose not to pursue a waiver and may instead make an award to an Offeror that does not require a waiver.

(End of Provision)



## **E.6 52.252-5 AUTHORIZED DEVIATIONS IN PROVISIONS (NOV 2020)**

(a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR Chapter 1) provision with an authorized deviation is indicated by the addition of “(DEVIATION)” after the date of the provision.

(b) The use in this solicitation of any VAAR Acquisition Regulation (48 CFR Chapter FEDERAL ACQUISITION REGULATION (48 CFR Chapter 1)) provision with an authorized deviation is indicated by the addition of “(DEVIATION)” after the name of the regulation.

(End of Provision)

## **E.7 VAAR 852.252-70 SOLICITATION PROVISIONS OR CLAUSES INCORPORATED BY REFERENCE (JAN 2008)**

The following provisions or clauses incorporated by reference in this solicitation must be completed by the offeror or prospective contractor and submitted with the quotation or offer. Copies of these provisions or clauses are available on the Internet at the Web sites provided in the provision at FAR 52.252-1, Solicitation Provisions Incorporated by Reference, or the clause at FAR 52.252-2, Clauses Incorporated by Reference. Copies may also be obtained from the contracting officer.

[Contracting officer shall list all FAR and 48 CFR Chapter 8 (VAAR) provisions and clauses incorporated by reference that must be completed by the offeror or prospective contractor and submitted with the quotation or offer.]

(End of Provision)

## **E.8 52.252-1 SOLICITATION PROVISIONS INCORPORATED BY REFERENCE (FEB 1998)**

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

<https://www.acquisition.gov/browse/index/far>  
<https://www.va.gov/oal/library/vaar/>

(End of Provision)

| <b><u>FAR<br/>Number</u></b> | <b><u>Title</u></b>                                                                             | <b><u>Date</u></b> |
|------------------------------|-------------------------------------------------------------------------------------------------|--------------------|
| 52.203-11                    | CERTIFICATION AND DISCLOSURE REGARDING<br>PAYMENTS TO INFLUENCE CERTAIN FEDERAL<br>TRANSACTIONS | SEP 2024           |
| 52.204-7                     | SYSTEM FOR AWARD MANAGEMENT                                                                     | NOV 2024           |

|                               |                                                                  |          |
|-------------------------------|------------------------------------------------------------------|----------|
| 52.212-2                      | EVALUATION—COMMERCIAL PRODUCTS AND<br>COMMERCIAL SERVICES        | NOV 2021 |
| 52.217-5                      | EVALUATION OF OPTIONS                                            | JUL 1990 |
| 52.229-11                     | TAX ON CERTAIN FOREIGN PROCUREMENTS—NOTICE<br>AND REPRESENTATION | JUN 2020 |
| 852.209-70                    | ORGANIZATIONAL CONFLICTS OF INTEREST                             | OCT 2020 |
| 852.273-70                    | LATE OFFERS                                                      | NOV 2021 |
| (End of Addendum to 52.212-1) |                                                                  |          |